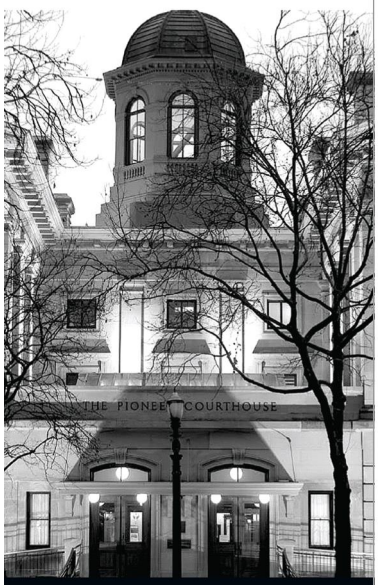
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SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED JURISDICTION

STEPHEN RUSSELL, an individual,

Plaintiff,

v. CASE NO. CGC-18-570137

TARA WALSH, an individual; and DOES 1-20,

Defendants.

TARA WALSH, an individual,

Cross-Complainant,

v.

STEPHEN RUSSELL, an individual; and DOES 1-10,

Cross-Defendants.

REMOTE DEPOSITION BY VIDEOCONFERENCE

STEPHEN WALSH

TAKEN ON
MONDAY, APRIL 26, 2021
12:03 P.M.

[redacted]
CHAPPAQUA, NEW YORK 10514

Public copy: private street addresses and a personal email address are removed. Otherwise unchanged.

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REMOTE DEPOSITION BY VIDEOCONFERENCE

STEPHEN WALSH

TAKEN ON

MONDAY, APRIL 26, 2021

12:03 P.M.

(WHEREUPON, the Exhibit 34 and Exhibit 35 were premarked.)

THE VIDEOGRAPHER: We are on the record. The time is 12:03 p.m., East Coast Time. The date is April 26, 2021. This is the beginning of the deposition of Stephen Walsh. The case caption is Stephen Russell versus Tara Walsh.

Will counsel introduce yourselves and state whom you represent.

MS. LLAGUNO: Good afternoon. My name is Joy Llaguno, and I represent Plaintiff Stephen Russell with the law firm Hook & Hook.

MR. MOORE: Yeah. This is Frank Moore, Law Offices of Frank S. Moore. I'm representing Mr. Walsh for purposes of this deposition only.

THE VIDEOGRAPHER: The court reporter will now swear in the witness.

THE REPORTER: Mr. Walsh, please raise your right hand. Do you solemnly swear under

penalty of perjury that the testimony you're about to give is the truth, the whole truth, and nothing but the truth?

THE DEPONENT: Yes.

THE REPORTER: Okay. Counsel, you may proceed.

STEPHEN WALSH, having been first duly sworn, was examined, and testified as follows:

EXAMINATION

BY MS. LLAGUNO:

Q. Good afternoon, Mr. Walsh. My name is Joy Llaguno. Could you please state your full name for the record?

A. Stephen Walsh.

Q. And what is your current address?

A. [redacted], Chappaqua, New York, ZIP Code 10514.

Q. And are you taking this deposition at that address?

A. Yes.

Q. Is anyone in the room with you?

A. No.

Q. What device are you using?

A. I'm using a Chromebook.

Q. Are there any other programs open on your

Chromebook?

A. Nope.

Q. Are there any documents in front of you?

A. Nope.

Q. Okay. So during this deposition, you're not allowed to receive any off-screen guidance or instruction. And I'm going to trust that you're not going to do that. Is that agreed?

A. Agreed. Is Stephen Russell participating? Is he in your office, by any chance?

Q. No. It's just me in the room.

A. So he's not -- he's not tuned in anywhere?

Q. No, I don't believe so. He may join in later, but currently --

A. Well, I -- I think it -- I think that should be clear.

Q. Okay. I will -- you will --

MR. MOORE: Yeah --

BY MS. LLAGUNO:

Q. -- you will know when -- if he comes on. He's not on --

A. I -- I'm sure he's on right now, but whatever.

MR. MOORE: Yeah. As long as -- counsel, as long as -- I mean, because I think it's

appropriate -- in fact, I think it's required under California law -- that if someone's attending the deposition, a record must be made of it. So if he does -- even if he's coming into your office to listen, he's got to declare his presence, and he should be on camera.

MS. LLAGUNO: Right. He is not in my office, and he's not currently logged into this deposition.

MR. MOORE: Okay.

BY MS. LLAGUNO:

Q. So Mr. Walsh, as I was saying, please don't discuss with anyone during the deposition through text message, chat, or email; is that understood?

A. Yep.

Q. And if you need a break during the deposition, please let me know. We can do that. I'd like to try to finish as quickly as possible.

But also, just let me know if you'd like to take a break. That -- that would be fine. Just please let me either finish the question or topic or make sure that there's no pending questions before we go on break; is that understood?

A. Yep. Yes.

Q. And during this deposition, I will be sharing my screen with you to these certain documents. Please let me know if you're able to view them, if you'd like me to zoom in or scroll up and down so that you may view the document. If I'm asking you questions about the documents, I'm going to assume you reviewed the document, you understand it, and the answer's you're providing are going to be based on that understanding; is that agreed?

A. Agreed.

Q. And today, Monica, our court reporter, will be transcribing everything we say. After that -- the deposition is over, she'll produce a transcript of every word that's been spoken today. To make sure we have a clear transcript, we should try our best not to talk over each other. Please let me finish my question before you start to answer, and I will do the same; do you understand?

A. Yes.

Q. I know in day-to-day life sometimes you think you know the question I'm going to ask, and you answer before I finish asking it. But I please ask you to refrain from doing that so our court reporter will get a clear record. I will try my best to speak slowly and clearly. Please let me

finish my questions before responding. And I'm only trying to ensure that the court reporter can get a clear record, understood?

A. Yes.

Q. For the same reasons -- you've been doing a good job at it -- it's important to use complete words rather than just nodding our head or saying mm-hmm. So try to use complete words, a yes or no, just so the court reporter can get everything on the transcript; do you understand that?

A. Yes.

Q. I'm also requesting that, if you do not understand a question that I'm asking, please ask me to repeat or rephrase it. If you answer the question, it will be assumed that you did understand that question; is that clear?

A. Yes.

Q. If you don't know the answer to a question, please feel free to say so, but I'm entitled to your best estimate; is that clear?

A. Yes.

Q. After your deposition is over, you'll receive a copy of the transcript, and you'll have the opportunity to correct any answers. However, any party may then comment on any changes that you

make as they relate to your credibility; is that understood?

A. Yes.

MR. MOORE: Right here, I want to -- I want to insert, based on what we've done before. Unless Mr. Walsh declares at the end of the deposition that he wants to order a copy, no one from this side is ordering one. So the court reporter will have to make arrangements with Mr. Walsh to afford him the opportunity to review it, as we discussed at Maura Walsh's deposition. Just -- I just want to make that for the record.

BY MS. LLAGUNO:

Q. Okay. So Mr. Walsh, are you okay with the -- Naegeli, the deposition reporters, to reach out to you by email to get you the --

A. Yes.

Q. -- okay, to get -- let you to review your transcript?

A. (No audible response).

Q. Okay. Mr. Walsh, you understand that your testimony today is under oath, and you're sworn to testify truthfully; do you understand?

A. Yes.

Q. The oath you just took has the same force

and effect as if we're sitting in a courtroom with a judge and jury; do you understand that?

A. Yes.

Q. Is there any reason why you cannot testify truthfully today?

A. No.

Q. You're not on any medications or any substances that would impact your ability to testify truthfully?

A. No.

Q. You have no injuries or otherwise -- or anything otherwise that would affect your ability to testify truthfully?

A. No.

Q. Okay. Thank you.

And have you ever been deposed before, Mr. Walsh?

A. Yes.

Q. How many times?

A. Twice, I believe.

Q. Okay. When were those times?

A. I -- I -- I -- I don't recall. It was so long ago. I have no idea.

Q. What was the nature of the lawsuit?

A. Do I have to answer that? I mean, I -- I

don't see what -- what connection it has to this case.

Q. It's just general, basic questions we ask at most depositions.

A. I -- I -- I'm not going to answer it.

Q. Could you tell me your role in the deposition?

A. Witness.

Q. Did you testify at trial and deposition?

A. Just deposition.

Q. Okay. Could you tell me what jurisdiction the lawsuit occurred?

A. New York City in New York State.

Q. Okay. Thank you, Mr. Walsh.

I'm going to share with you your deposition subpoena, which we will mark as Exhibit 86.

THE REPORTER: Marked as Exhibit 86.

(WHEREUPON, Exhibit 86 was marked for identification.)

THE REPORTER: And after the deposition, will you send me over the exhibits that will be marked --

MS. LLAGUNO: Yes.

THE REPORTER: -- Ms. Llaguno? Okay.

Thank you.

BY MS. LLAGUNO:

Q. And Mr. Walsh, can you view this -- can you see the document?

A. Yes.

Q. Do you recognize this document?

A. Not really.

Q. Did you review this Attachment 3 to your deposition subpoena?

A. I did not, no.

Q. So you have not seen these requests for production of documents; is that correct?

A. You know, I -- I believe I did, but -- but briefly. And I told Brian Waller that I didn't have any documents related to the case.

MR. MOORE: Can we establish who Brian is?

MS. LLAGUNO: He is co-counsel for Steve Russell in New York.

BY MS. LLAGUNO:

Q. So did you do anything to prepare for your deposition?

A. I did not.

Q. Did you talk to Tara Walsh about this deposition?

A. Not what I was going to say during the

deposition. Everyone in my family is aware that I'm giving a deposition.

Q. So what did you talk about with Tara Walsh?

A. She knows I have a deposition, and she introduced me to Frank and not much else.

Q. Did she ask you to say anything, in particular?

A. Nope.

Q. Did Tara Walsh ask you not to say anything?

A. Nope.

Q. Did you talk to anybody else about this deposition besides your attorney?

A. No. I mean, like I said, my entire family is aware that I'm giving a deposition, the people that live here. It's pretty obvious. But I haven't talked about the content of my deposition.

Q. Okay. Did you review any documents in preparing for your deposition?

A. No.

Q. Did you ask to see any documents, or did someone provide you documents in preparation for this deposition?

A. No.

Q. I am going to turn to Attachment 3, which I showed you earlier, in your deposition subpoena. Did you --

A. Yep.

Q. -- review all of the requests for production listed here?

A. They didn't apply.

Q. And could you explain? What do you mean they didn't apply?

A. Well, I -- I -- I didn't have any documents relating to the case or communications. Or -- so -- but -- but anything else there, yeah, I mean, I -- I -- I've complied. Sure.

Q. So you did read Requests for Production 1 through 10; is that correct?

A. I -- I -- I -- I -- I've read -- I may have. I may have read through it quickly. I believe I did.

Q. Okay. And so your position is you did not have any responsive documents in your possession; is that correct?

A. That is correct.

Q. Where did you search for documents?

A. I -- I -- I didn't search for documents because I didn't know that any existed.

Q. How are you able to confirm that nothing existed if you didn't do any searches for documents?

A. What -- what -- I -- I don't understand your question. What would I have searched for? I didn't have emails with Russell. I didn't have text messages with Russell. I didn't create any documents to send to Russell. So what -- what exactly are you implying or asking for?

Q. Okay. We can leave it at that. You're stating that you did not have any communications, text messages, or emails with Stephen Russell.

A. None that I initiated.

Q. And none that are no -- are any of them still in your possession?

A. I -- I -- I'm not sure if they're still on my phone or -- no, I -- I don't believe so. I may have some that he sent me. I -- I -- I generally do not respond to him, and I never have.

Q. So sitting here today, you did not search your email for responsive documents; is that accurate?

A. That is correct.

Q. You didn't search your phone either for responsive documents; is that accurate?

A. No. I -- I -- I -- as I said, I knew that

I did not initiate documents with Russell. So I -- I -- I didn't -- I -- I -- there's nothing to search for.

Q. Okay. I assume you're not in the practice of deleting your emails and text message ever so often; would that be accurate?

A. No. No. I -- I didn't delete anything. I may still have some that he sent me. But he sends us stuff all the time that I don't respond to.

Q. But messages that are -- that may be responsive to the subpoena are still on your phone or device or email account?

A. It -- it's possible. It's possible.

Q. Okay. Do you agree to gather -- to search for those documents after the deposition ends and provide them to your lawyer --

A. No.

Q. -- for production?

A. No.

MS. LLAGUNO: Okay. I just want to state for the record that this deposition cannot adjourn today because the documents called for in the subpoena were not brought to the deposition.

MR. MOORE: And I would just add for the record that if they were sent by your client, they

were equally available to him. So it would be burdensome on this witness.

And you -- you don't get to decide whether the deposition ends or not. A judge does. And so it -- it -- you know, when -- when the only potential record of -- of documents that exist are those that -- created by your client, he's equally in possession of those records, and he can provide them himself.

MS. LLAGUNO: Right. But that is not just the scope of these documents.

MR. MOORE: I'm -- I'm not -- I'm not going to argue with you. Just that's my statement for the record.

MS. LLAGUNO: Thank you, Mr. Moore. And I'd like to remind you again I'm please asking you to refrain from --

MR. MOORE: I'm not -- I'm not going to listen to this babble every single time. We're not going to get into you arguing with me. Just move along. I've stated my point for the record. I'm making a record.

MS. LLAGUNO: Okay. And I'm doing the same. Respectfully, I'm letting you finish your objections. Please let me finish my own statements.

I'd really appreciate it.

THE REPORTER: And yes, counsel, as a reminder, please do speak one at a time so the record will be clear.

MR. MOORE: Don't argue with me, and then we'll be fine.

BY MS. LLAGUNO:

A. Joy, can you let me know the nature of the cases and the charges in the case as they apply to me and me as a witness?

Q. So in your deposition subpoena, we have attached the pleadings in the case. Did you have a chance to review those?

A. Yes.

Q. And so you are aware of the claims and counterclaims in the case; is that correct?

A. Yeah. I just want to make sure that you are because the -- you know, the -- the questioning, I -- I -- I -- you know, I'm going to answer all questions as they apply to the case, and I am not going to answer questions about my personal life or my family.

Q. Okay, Mr. Walsh. I just wanted to note -- but I'm sure your counsel has explained -- the scope of discovery may go beyond the specific claims in

the case. And it also relates to evidence that may lead to other admissible evidence.

MR. MOORE: Don't make that assumption, counsel, because, as you know, there's a -- I'm going to read this into the record now because it's germane. But with any family, and particularly those in New York, they have a right to familial privacy. That was recognized --

MS. LLAGUNO: And --

MR. MOORE: I'm -- I'm going to -- I'm going to make this record, so just bear with me.

That right was recognized by the Supreme Court of the United States in Prince v. Massachusetts at 321 U.S. 158 in 1944.

In New York, the Matter of A.M.61 A.D.2d 426 in 1978 recognized the familial privilege between family members.

Since then, People versus Fitzgerald in New York, 101 Misc.2d 712, New York County Court in 1979, extended that familial privilege among adult children.

Just the general law in the United States, based on U.S. Supreme Court precedent, Allstate Insurance Company versus Hague, a 1981 case, 449 U.S. 302, the Supreme Court held that federal system

-- the federal system contemplates that individual states may adopt distinct policies to protect their own residents.

In People versus Conklin, a California Supreme Court case, it was recognized -- and the -- the cite for there was 12 Cal.3d 259 -- Congress intended that the states be allowed to exact more restrictive laws designed to protect the right of privacy.

To the extent there is any conflict of law issues that's -- arises in this case with regard to rights to privacy, in the -- in Kearney v. Salomon Smith Barney, Inc., a 2006 case at 39 Cal4th 95, in -- in analyzing choice of law issue, California courts apply the governmental interest analysis under which a court carefully examines the governmental interest or purposes served by the applicable statute or rule of law of each of the affected jurisdictions to determine whether there is a true conflict. If such a conflict is found -- found to exist, the court analyzes the jurisdictions' respective interest in -- to determine which jurisdiction's interest would be more severely impaired if that jurisdiction's law were not applied in the particular context presented

by the case.

Those are the authorities by which right to familial privacy is being asserted by Mr. Walsh in this case, as I understand it. That's my statement.

MS. LLAGUNO: And Frank, I -- I let you finish. But I have stated before on the record I don't -- do not think it appropriate to have a long speaking objection taking up nearly three minutes of our deposition time. That's for briefing in front of the court and --

MR. MOORE: I'm not going to argue with you. I've made my statement. You can move on --

MS. LLAGUNO: I would --

MR. MOORE: -- move --

THE REPORTER: Sorry --

MS. LLAGUNO: Mr. Moore --

THE REPORTER: Stop. Please -- please do speak one at a time, or the record won't be clear.

Please restate your statement you were in the middle of, Ms. Llaguno. Thank you.

MS. LLAGUNO: Thank you. I was just telling Mr. Moore, reminding him, I let you finish your speaking objection even -- although it was improper. Please let me finish my statements before

interrupting me, as the court reporter has pointed out. You continue to do that. I'd really appreciate it if you refrain from doing that for the remainder of this deposition.

MR. MOORE: I'm not going to argue with you, so stop arguing.

MS. LLAGUNO: The court reporter pointed it out, Mr. Moore. But thank you.

BY MS. LLAGUNO:

Q. Mr. Walsh, I am now going to show you what we're going to mark as Exhibit 87. And can you see this document, Mr. Walsh?

A. Yes.

Q. Do you recognize this document?

A. I -- I -- I guess so. I mean, I've gotten so many of them from him that I kind of gloss over. But it looks familiar, I would say.

Q. And this is a document Decision & Order from the Supreme Court of the State of New York County of Westchester. Do you -- did you receive this document?

A. Yes.

Q. And you reviewed the court order compelling your appearance here today?

A. Yes. That's why I'm here.

Q. Okay. Thank you.

And -- oops. I want to point your attention to the three paragraphs below where it says, "Accordingly, it is ordered." Could you please read that -- review those to yourself, Mr. Walsh?

A. It's kind of difficult for me to read the print.

Q. Let me -- I can zoom in for you. Is that better?

A. Yes.

THE REPORTER: And this document is marked as Exhibit 87.

(WHEREUPON, Exhibit 87 was marked for identification.)

BY MS. LLAGUNO:

A. Okay.

Q. All right.

A. I've read it.

Q. And is that in line with your understanding of your appearance here today, Mr. Walsh?

A. Yes.

Q. Okay. Thank you.

And I am going to show you now what we're

going to mark as Exhibit 88.

THE REPORTER: It will be marked as Exhibit 88.

(WHEREUPON, Exhibit 88 was marked for identification.)

BY MS. LLAGUNO:

Q. Oops. Sorry.

Okay. This is Exhibit 88. Do you recognize this document, Mr. Walsh?

A. I can't say I -- not necessarily, no.

Q. Did you prepare this document?

A. I believe I may have, yeah, assisted on preparing it, yes.

Q. And you authorized the filing of this document with the New York court?

A. Yes.

Q. And this is your -- is this your signature at the bottom of this document?

A. It -- it appears to be, yes.

Q. Okay. Thank you.

And I'm -- Mr. Walsh, I'm just going to ask you a few background questions about your education and professional history. What is the highest level of education you attained?

A. I don't see the relevance.

Q. It's just background just for foundation.

A. I -- I -- undergraduate college degree.

Q. And when did you -- I'm sorry -- when did you obtain your degree?

A. 1982.

Q. What was your degree in?

A. Business administration.

Q. Can you give me an overview of the jobs you've had in the last five years?

A. Absolutely not.

Q. You -- just to clarify, you do not want to provide an answer for the jobs you've had in the last five years?

A. That's correct.

Q. And you live in Chappaqua, New York; is that right?

A. Yes.

Q. How long have you lived there?

A. We've lived in our current house for 27-plus years.

Q. And who else lives with you at your home on Whippoorwill Road?

A. My son, Brendan; my daughter, Kiara; my daughter, Tara; and my granddaughter, Evie.

Q. Does anybody else live in any other part

of the property?

A. No.

Q. So with the exception of Brienne Walsh, all your children still live with you at Whippoorwill Road; is that accurate?

A. I -- I just gave you the answer to your question.

Q. Okay. You mentioned that Tara Walsh and your granddaughter, Evie, are living with you. How long have they been living there?

A. Since, roughly, June of 2018 -- no, since June of 2018, not roughly -- early June. I don't know the exact date. But ...

Q. And from June of 2018, they lived with you consistently?

A. That is correct.

Q. Does Tara pay you any rent?

A. She does not.

Q. Does she help with any house expenses such as groceries?

A. She buys her own groceries.

Q. Do you talk about this legal proceeding with Tara Walsh?

A. We have -- yeah, I mean, we -- we -- of course we talk about the legal cases because they

seem to be numerous and ongoing and forever and because we have strange people knocking on our doors at all hours of the night. We have police here. We've had a sheriff with a gun, who I didn't know was a sheriff, knocking on our back door. So there's -- yes. Do we talk about it? Yes because it's constant and it's -- and they've tormented our family for three years. And Russell has knowingly done this, and -- and that's -- so do we talk about the case? It's impossible not to talk about the case.

Q. Do you ever give Tara advice with respect to this proceeding?

A. I -- in -- specifically, no. Generally, it's possible.

Q. And can you give me little details on what you've --

A. No.

Q. -- advised her?

A. No, I can't. I don't even know what I've advised her.

Q. And I just want to note briefly. I'm going to refer to your family members, just to avoid any confusion, by their first names moving forward. Please let me know you understand if I'm speaking

about Tara, Maura, Brendan, and Brienne, I'm referring to your family members; is that clear?

A. Yes.

Q. And does -- do you know if Tara Walsh currently has a job?

A. She does.

Q. And what does she do?

A. She does marketing --

Q. And --

A. -- but that's as much as I'll answer.

Q. -- do you know what company she works for?

A. No.

Q. And do you know how long she has had it?

A. No.

Q. Do you know if she started the company?

A. No.

Q. Do you know if her -- if the company she's working for -- I'm sorry. Scratch that. Let me rephrase.

Do you know how successful her -- the company is financially?

A. No.

Q. Do you know if Tara has health insurance?

A. I believe she has Affordable Care Act insurance.

Q. So you mentioned that you allow Tara to live with you rent-free. Do you support her financially in any other ways?

A. No.

Q. Do you know if she has any other sources of income besides what you mentioned?

A. I do not.

Q. Okay. One of the issues in this case is Tara giving Steve Russell drugs without his knowledge or consent. Tara has admitted to putting multiple drugs into Steve Russell's drink without him knowing. Are you familiar with Tara Walsh doing that?

MR. MOORE: Objection; misstates the evidence; assumes facts not in evidence. You're not entitled to summarize the -- what you believe to be the evidence as a predicate for a question.

So Stephen, do you not have to accept as true whatever she is representing. But you can answer.

BY MS. LLAGUNO:

A. I have no knowledge of her doing that.

Q. Has Tara Walsh ever spoken with you about her drugging Steve Russell?

A. Never.

Q. So I am going to show you now what we're going to mark at -- or what was previously marked as Exhibit 34.

Exhibit -- this exhibit that was previously marked as Exhibit 34 bear -- bears the Bates stamp Walsh 000168 and was produced by Tara Walsh in this litigation. Do you recognize this document, Mr. --

A. No, I do not.

Q. And I am going to show you now what we're going to -- what was previously marked as Exhibit 35.

Are you able to view the document, Mr. Walsh?

A. Yes.

Q. And do you recognize this document?

A. No.

Q. On -- this is a declaration that Tara Walsh submitted to the court. I am going to scroll down to paragraph 22 of Ms. Walsh's declaration. Could you please review this paragraph 22 on page 6?

A. Okay.

Q. And do these documents refresh your recollection on any -- on the Tara Walsh drugging Steve Russell?

A. No.

MR. MOORE: That lacks foundation. He's never established that he has any knowledge of this. So it couldn't refresh his recollection by its very definition.

THE DEPONENT: Agreed.

BY MS. LLAGUNO:

Q. And so one of the drugs Tara Walsh drugged Steve Russell with was lithium. Do you know if Tara Walsh --

MR. MOORE: Wait a -- hold on. You -- you -- you have no evidence of that. That misstates the evidence. It's argumentative; lacks foundation.

You don't have to accept anything she's saying with that regard. There is no evidence of that.

MS. LLAGUNO: Thank you, Mr. Moore. I'd like to remind you again you can state your objection --

MR. MOORE: No. I -- I remind you again to stop misrepresenting the record.

MS. LLAGUNO: Mr. Moore, I --

MR. MOORE: That's what you should do.

THE REPORTER: Stop. Counsel, please speak one at a time, or your record will not be

clear. So thank you. I will not interrupt again. Or ...

MS. LLAGUNO: Mr. Moore, as the court reporter has pointed out again, can you please let me --

MR. MOORE: Stop arguing with me.

MS. LLAGUNO: -- before interrupting. Mr. Moore --

MR. MOORE: Stop arguing with me. Just -- just don't misrepresent the record, please.

MS. LLAGUNO: Mr. Moore, please let me finish my statements before stating something else. The court reporter has already pointed out numerous times that you're interrupting me.

BY MS. LLAGUNO:

Q. Mr. Walsh, do you know if Tara Walsh has access to lithium?

A. Not to my knowledge.

Q. Do you know if Tara Walsh has access to Seroquel?

A. I have no idea.

Q. And have you ever seen Tara Walsh put drugs in Steve Russell's drink without him knowing?

A. Of course not.

Q. Have you ever seen Tara Walsh put -- or

give drugs to anyone else without their knowledge or consent?

A. Absolutely not.

Q. And do you know if Tara Walsh gave Steve Russell Seroquel in New York?

A. Absolutely not.

Q. And do you know if Tara Walsh gave Steve Russell Seroquel in San Francisco?

A. No. Absolutely not.

Q. Would Tara Walsh been -- have been able to get access to lithium from her mother, Maura Walsh?

MR. MOORE: Calls for speculation.

BY MS. LLAGUNO:

A. Absolutely not.

Q. Do you know if Tara Walsh was able to get access to lithium from her mother, Maura Walsh?

A. Absolutely not. I -- it -- I -- I don't recall ever seeing lithium in -- in our household.

Q. Do you know if Tara Walsh has a prescription from a doctor for Seroquel?

A. I have no idea.

Q. Do you know if Tara Walsh has a prescription from a doctor for lithium?

A. I have no idea.

Q. Do you have any knowledge of any

prescriptions Tara has for any other prescription medication?

A. I -- I -- I don't know what prescription she has. It's her business. I don't ask her.

Q. Do you have an understanding of why Tara Walsh would drug Stephen Russell?

A. No.

MR. MOORE: Assumes facts not in evidence.

BY MS. LLAGUNO:

Q. You can respond, Mr. Walsh.

A. I do not, no.

Q. Has Tara Walsh ever told you that she drugged Stephen Russell because she wanted him to go to sleep?

A. No.

Q. Do you have any knowledge of Tara Russell -- I'm sorry. Scratch that.

Do you have any knowledge of Tara Walsh explaining that she drugged Stephen Russell because of self-defense?

A. No. Who -- what -- where -- where are you reading from? You're not reading for -- are you reading from a screen, or are you being fed these questions as we speak?

Q. I'm sorry. What was that?

A. You appear to be looking at something when you -- when you ask the questions. Are you being fed these questions from another source like Stephen Russell, or are these questions you have prepared? Because it looks to me as if you're reading the questions before you ask me the questions.

Q. I do have an outline of categories that I prepared of questioning for you. No one is feeding me questions live, if that's your question.

A. Yeah. That is my question.

Q. So you do not have an idea from -- or -- or -- sorry. Let me rephrase.

You do not have an idea of where Tara got the idea to give Steve Russell prescription drugs --

A. I have --

Q. -- without his knowledge.

A. -- no idea whatsoever. I -- I have no knowledge of Tara Walsh ever drugging Steve Russell in any manner, shape, or form.

Q. Okay. And did you ever give Tara Walsh prescription medication as a child?

MR. MOORE: Objection. What -- what does this --

THE DEPONENT: Yeah --

MR. MOORE: -- have to do with anything?

And it's -- it invades the privacy of this family.

THE DEPONENT: Yeah. I'm -- I'm not --

MR. MOORE: I'm not sure --

BY MS. LLAGUNO:

A. I'm not answering it.

MS. LLAGUNO: And so just to clarify, Mr. Moore, you're directing your client not to answer the --

MR. MOORE: I'm not -- he -- he -- he -- he just --

THE DEPONENT: I -- I -- I --

MR. MOORE: -- indicated --

THE DEPONENT: -- I am making the decision.

MR. MOORE: He indicated he's made that decision on his own. I'm -- I'm asserting objections.

MS. LLAGUNO: And Mr. Moore, can you explain the basis of your -- of your --

MR. MOORE: He -- he -- he doesn't -- he -- I believe it's privacy; is that correct?

THE REPORTER: Stop. Please repeat --

THE DEPONENT: Yeah.

THE REPORTER: -- the last three statements.

And as a reminder, please speak one at a time. Your record will not be clear otherwise.

MS. LLAGUNO: Mr. Moore, I've repeated it three or four --

MR. MOORE: Can you stop? Just -- just move on.

MS. LLAGUNO: -- in the --

MR. MOORE: Stop.

MS. LLAGUNO: Please stop interrupting --

MR. MOORE: Stop.

MS. LLAGUNO: -- me.

Mr. Moore, the court reporter is having a hard --

MR. MOORE: Stop.

MS. LLAGUNO: -- time. And she's pointed it out.

MR. MOORE: Just move on. Ask --

MS. LLAGUNO: I'm --

MR. MOORE: -- the question.

MS. LLAGUNO: This is my deposition, and I'm able to make a record. I'm explaining to you again on the record. Please stop interrupting me. Let me finish my statement before you speak.

MR. MOORE: Ask the question.

BY MS. LLAGUNO:

Q. Do you know if anybody else in your household is prescribed lithium?

A. Not to my knowledge.

Q. Do you know if anybody else in your household is prescribed Seroquel?

A. Not to my knowledge.

Q. Thank you. I'm now going to show you what we're going to mark as Exhibit 89.

THE REPORTER: Marked as Exhibit 89.

(WHEREUPON, Exhibit 89 was marked for identification.)

BY MS. LLAGUNO:

Q. And Mr. Walsh, do you recognize these text messages?

A. I do not.

Q. And I will scroll down so you can read the text messages. Do you believe these are text messages between you and Steve Russell?

A. It's possible.

Q. As I'm scrolling down, please review these text messages.

A. The ones in green are a little difficult to read.

Q. I can scroll in for you -- or zoom in for you. Is that better?

A. Yeah, kind of.

Q. Let me know. There are, I think -- I believe seven pages total --

A. Okay.

Q. -- of these text messages.

A. Okay.

MR. MOORE: I'm just not clear what this is, and I don't know --

MS. LLAGUNO: Mr. Moore, please --

MR. MOORE: It's not very apparent what this is because there's --

THE DEPONENT: I -- I -- Frank, I'm okay. I mean, there's --

MR. MOORE: Okay. All right.

THE DEPONENT: I -- I -- I have nothing to hide here or anywhere else. So ...

MR. MOORE: That's fine. I just would notice that one of the texts says, "As a mother," and -- and you're certainly not a mother. So I -- I don't know who the author is of some of this stuff.

MS. LLAGUNO: Mr. Moore, again --

THE DEPONENT: Yeah. I -- I noticed that, too.

MS. LLAGUNO: -- please stop with your improper speaking objections and coaching the

witness. Let --

MR. MOORE: No. I'm not coaching the witness. The problem is you throw --

MS. LLAGUNO: I'm asking --

MR. MOORE: -- something up here and did -- you didn't --

MS. LLAGUNO: -- I'm asking --

MR. MOORE: -- establish a foundation for it.

MS. LLAGUNO: Mr. Moore, I'm asking him to review the text messages so we can establish that foundation. Please stop interrupting, and please stop with your improper speaking objections.

BY MS. LLAGUNO:

Q. Mr. Walsh, are you done reviewing these text messages?

MR. MOORE: I don't know how you could possibly have reviewed all of that. It --

THE DEPONENT: Well --

MR. MOORE: I've only seen one -- one page for a few minutes and --

MS. LLAGUNO: We're on --

MR. MOORE: -- there's all kinds of pages on this thing.

THE DEPONENT: Frank, again, I'm -- I'm --

I'm fine. I -- I --

MR. MOORE: Okay.

THE DEPONENT: I mean, I have --

MR. MOORE: All right.

THE DEPONENT: -- nothing -- nothing to hide. So ...

MR. MOORE: All right.

BY MS. LLAGUNO:

Q. Ms. Walsh, did -- Mr. Walsh, did you want me to go to another page of the text message, or are you able --

A. No.

Q. -- to review them? Were you able to review all of them?

A. No. I -- I -- I do want you to ask your questions.

Q. Did you review the text message I'm showing you?

A. For the most part, yes.

Q. Do you recognize these text messages?

A. I -- I can't say I do.

Q. So these text messages are between you and Steve Russell --

MR. MOORE: No. Lacks foundation.

MS. LLAGUNO: Mr. Moore, please --

THE REPORTER: Again, stop. Stop. We can go off the record if you cannot speak one at a time, or the record will not be clear. Please, again --

MR. MOORE: Lacks --

THE REPORTER: -- refrain from speaking over each other.

MR. MOORE: Lacks foundation; assumes facts not in evidence.

THE REPORTER: All right. And Ms. --

MR. MOORE: You have not predicated this.

THE REPORTER: All right. Great.

Ms. Llaguno, can you please repeat your question?

MS. LLAGUNO: I was ask -- thank you, Monica.

BY MS. LLAGUNO:

Q. Mr. Walsh, do you recognize these text messages?

A. No.

Q. These text messages are between you and Steve Russell from Steve Russell's phone.

MR. MOORE: I will object as mischaracterizing the evidence. There's no foundation for it. There's no foundation for this document. You cannot state what it is without a

witness actually establishing the foundation of what it is.

MS. LLAGUNO: At deposition, I am able to state what it is and ask him questions about the document.

MR. MOORE: Again -- again, this is a deposition to preserve trial testimony. I'm making objections on foundational basis. This has not been properly authenticated.

MS. LLAGUNO: And again, I've explained to you this is a deposition, and I am able to ask questions about documents regardless of their admissibility at this --

MR. MOORE: But you're -- but you're just wrong on the law. So that's just a problem. You -- you seem not to get it in your head that you're wrong on the law.

MS. LLAGUNO: Mr. Moore, again, I'll ask you then state your objections succinctly. You don't have to attack me on the record.

BY MS. LLAGUNO:

Q. Mr. Walsh, would you agree that you and Steve Russell communicated frequently while Tara Walsh was in San Francisco in 2018?

A. Frequently? No, definitely not

frequently.

Q. Did you -- but you did communicate; is that correct?

A. Yes, I did.

Q. And did you communicate with Steve Russell regarding Tara's mental health issues during this time?

A. They were -- he -- he expressed his opinion of her situation. And you know, I was -- I was open to communicating with him because I knew the situation she was in was pretty horrific because I had witnessed Mr. Russell in psychotic episodes before, and we did not want Tara in San Francisco with the baby. We were very concerned about the baby. So yeah, I -- I tried to keep open communication with Stephen Russell because I thought it was -- it was essential.

Q. And Mr. Walsh, do you have any psychiatric training?

A. Well, if -- if I was to see a man walking down Fifth Avenue naked playing a violin, I wouldn't need psychiatric counseling to think that there was something wrong.

Q. But you did not witness someone walking down naked down Fifth Avenue playing the violin --

A. I -- I witnessed someone drilling holes in walls, running wires, painting mirrors, painting walls, hearing voices. So you -- you make the determination.

Q. And your statement today is that you witnessed Steve Russell hearing voices and drilling holes; is that accurate?

A. Yes, absolutely, amongst -- among other things.

Q. And could you give me details on the other things you witnessed?

A. Well, he had -- he had -- I guess he was fortunate enough to acquire money through some investment, I believe, with Uber. But he -- he had a lot of money at his disposal, and he had a full complement of security guards following him everywhere with the -- I guess with the explanation that, you know, the Ukrainians were trying to kill him. I -- I don't know what -- if there are other ethnic groups. But certainly, the Ukrainians were mentioned. And he was paranoid, and his behaviors were erratic, to say the least.

So yeah. I mean, I -- I -- I -- I witnessed Stephen Russell acting absolutely bizarre, so if that answers your question.

Q. And were you aware that Stephen Russell had these business dealings in Ukraine?

A. I did not. I did not.

Q. And were you aware that Stephen Russell had security guards who purported to be former FBI and CIA tell him that there were foreign threats against him?

A. I --

MR. MOORE: Objection; lacks foundation.

BY MS. LLAGUNO:

A. I -- I -- what -- what -- I don't -- I don't -- I wouldn't have believed him if he did, but I don't --

Q. You --

A. -- I don't believe he ever told me that, no. He -- I -- it -- it's kind of like, you know, if -- if someone's telling you that the sun rises in the west, you could potentially humor a little and -- and nod your head. But you don't have to agree with them.

Q. Okay. And so these text messages, would you agree that Steve gave you routine updates on Tara Walsh during her time in San Francisco in 20--

A. No. I -- I -- I wouldn't say that. No.

No. I -- I think there were times of crisis. And you know -- and -- and that's when he would communicate, when he believed there was crisis. But you know, I was also communicating with Tara, and she was telling me some pretty horrific things about Russell. So I -- I -- I -- I -- quite frankly, I -- I took both sides with a grain of salt. I wasn't sure what was accurate and what was not accurate. But I certainly didn't take Stephen Russell's correspondences as -- as factual or accurate either.

Q. And did you ever tell that to Stephen Russell?

A. No.

Q. So I am going to point you to this text message where it says you state, "Excellent. Thank you Steve, we appreciate your assistance and understanding. And thank you for the timely updates."

A. Yes.

Q. Would you say you were not being genuine when you thanked Steve Russell for the timely updates then?

A. I would say --

MR. MOORE: Objection --

BY MS. LLAGUNO:

A. -- I -- I would be less than 100 percent genuine, yes.

Q. And what was your reason for responding to Steve Russell in that way?

A. To kind of defray the situation and -- and make sure that Tara and the baby were safe and keep the lines of communication open for that purpose.

Q. And you stated that you also took Tara Walsh's statements during this time with a grain of salt. What was your reason for doing so?

A. Well, Tara had, you know, against our wishes, gone out to San Francisco even after we had witnessed, you know, the situation with Stephen Russell. So I was -- you know, we -- we -- we were disappointed and -- and angry with her for -- for going out there in the first place. So I wasn't going to allow her to play the victim by telling me that, you know, this or that was happening. So I -- I -- I -- I -- I didn't necessarily pay a lot of attention to -- to that stuff either. I -- I started to pay more attention when things seemed to get worse.

Q. And do you believe Tara Walsh plays the victim regularly?

A. No, no. But I think people, like, on

occasion, make bad decisions and then try to justify them.

Q. And in the past, has Tara Walsh played the victim with any other -- in any other occasion?

A. Not that I'm aware of.

Q. Okay. And when you stated that you took Tara Walsh's statements with a grain of salt, could you explain to me what that -- what you mean by that? Did you take it that her statements could be not 100 percent truthful?

A. No. That's -- that's not what I would say. I would say that, you know, I -- I -- I -- it was hard for me to determine what was going on out there. And -- and I -- I felt like I didn't fully comprehend the situation out there. So I -- I was trying to get more information.

Q. At the time, what was your understanding of the situation in San Francisco?

A. My understanding as -- from -- from what I recall, was that there were two apartments. And the security was staying in one apartment, and Russell and Tara and the baby and a nurse or -- or -- or a nanny in another apartment. And she wasn't really going outside, and the baby wasn't going outside. And you know, security was checking in all the time,

and they were following her when she did go outside. And he had painted over the windows.

So it -- it was more of the lunacy that I witnessed in Brooklyn. That was my understanding. And -- and I believe that, as parents, we -- we were like -- you know, we wanted to tell her -- and -- and maybe we did -- that we told you not to do this, and -- and you did it anyway. So you know, we're -- we're -- we're really not happy with -- with this, and -- and it's -- it's as horrific as we thought it would be.

Q. So it's fair to say you were upset with Tara for going to San Francisco against --

A. Oh, absolutely. Yes.

Q. And did you --

THE REPORTER: Sorry. Ms. -- my -- my apologies, Ms. Llaguno. Your question got cut off. Can you just repeat it again?

MS. LLAGUNO: I think I said is it fair to say that you were upset with Tara Walsh for moving back to San Francisco against your wishes.

THE REPORTER: Thank you.

BY MS. LLAGUNO:

Q. Sorry, Mr. Walsh. I don't want to be rude. But for the court reporter's sake, just try

to let me finish the -- until the end of the state -- the question before you answer.

And during this time Tara Walsh was in San Francisco, did you believe Steve Russell was genuinely concerned about Tara Walsh's wellbeing?

A. No.

Q. And why do you think that?

A. Because I -- I don't think Steve Russell is an honest or sincere person.

Q. Do you believe Tara to be an honest and sincere person?

A. Yes.

Q. Although you've stated that you take her statements with a grain of salt; is that accurate?

A. I -- I -- I did say that, and I believe I also explained why I said that.

Q. And through your communications with Steve Russell, you don't believe he -- Steve Russell wanted to find solutions to the issues Tara was going through?

A. I don't know if you can hear me, but the video seems to have stalled.

Q. Oh.

A. Right.

Q. I -- I can repeat it.

Mr. Walsh, do you believe Steve Russell wanted to find solutions to the issues Tara was going through in San Francisco?

A. No, not really.

Q. Then what do you believe was the reason behind him texting you timely updates regarding Tara Walsh's status?

A. I -- I -- I think he wanted to justify his own actions and -- and kind of transfer the -- the -- the blame to Tara whereas because he knew that Tara was telling us that he was doing some really crazy things.

Q. During this time, what was your understanding of what Tara was going through?

A. It -- it sounded to me like it was a really horrific situation with -- with a person who is genuinely unstable kind of dictating and -- and controlling the environment.

Q. And Steve Russell texted you that "Tara fired her doctor" and that Tara stated that "She has been planting stories of abuse and mental illness for months, and I would regret breaking up with her and that she intended to deny me of my rights as a father." Did Tara ever state the same to you?

A. No.

Q. Tara never discussed with you that she was seeing psychiatric doctors in San Francisco?

A. I -- I -- I don't recall whether she did or not.

Q. Did Tara ever state to you that she had fired her psychiatrist in San Francisco?

A. No.

Q. Do you believe Tara was planting stories of abuse and mental illness to use against Steve Russell?

A. No.

Q. Do you know who Matan Gavish is?

A. I know him, not very well.

Q. How do you know him?

A. I've met him through Tara. He's been at our house once or twice.

Q. So Tara texted Matan Gavish in February of 2018 that, if she sued Steve for child support, she would "get, like, 2-K a month, which is not enough to live off of." And she said, "I'm better pretending I want to be with him and getting the most while I can than leaving him for good." Did she ever express similar thoughts about Steve Russell to you?

MR. MOORE: Objection --

BY MS. LLAGUNO:

A. No.

MR. MOORE: -- lacks foundation --

THE DEPONENT: Yeah. That --

MR. MOORE: -- assumes facts not in evidence.

BY MS. LLAGUNO:

A. That has nothing to do with me and no.

Q. Just to clarify, you said she never -- you testified she did not express similar thoughts to you; is that correct?

A. No. She did not. That's correct.

Q. Tara also texted Matan Gavish that she thought Steve "will also marry me if I submit to him, and then I can just divorce him. I really mostly hate him at this point." Did she ever express similar thoughts to you?

A. No.

MR. MOORE: Objection; lack -- lacks foundation; assumes facts not in evidence.

BY MS. LLAGUNO:

Q. Do you believe Tara was dating Steve Russell for his money?

A. No.

Q. Why did you believe Tara wanted to go to

San Francisco to be with Steve Russell against your wishes?

A. I'm not really sure, quite frankly. I -- I -- I -- I was at a loss for why she wanted to go to San Francisco.

Q. Were you speaking with Tara while she was in San Francisco after Evie's birth?

A. I -- it -- it -- the connection was lost for a second, so I did not hear the question.

Q. Can you hear me now, Mr. Walsh?

A. Yes.

MS. LLAGUNO: Monica, can you hear me? Am I cutting out?

THE REPORTER: No, no. You're -- you're good on my end. Mr. Walsh -- he -- it looks like he paused for a second, so that might be why. But no, you're coming in clear on my end.

MS. LLAGUNO: Okay.

THE DEPONENT: Just dropped again. Yeah. It seems to be on my end because --

THE REPORTER: Would -- would you like to go off the record and address it? Or ...

MS. LLAGUNO: That's --

THE DEPONENT: I don't know how. I -- I -- I don't think I have the capability. I'm -- I'm

hoping that the connection stays. I'm just checking it.

It says my signal is medium, but I -- I'm not in a position to do anything about it right now.

MS. LLAGUNO: Okay. Well, let me know if you can't hear me or you weren't able to hear the rest of my question. Is that okay, Mr. Walsh?

THE DEPONENT: Better right now, yes.

BY MS. LLAGUNO:

Q. Okay. The question -- going back, I asked: Were you speaking with Tara while she was in San Francisco after Evie's birth?

A. Infrequently.

Q. How often would you say you two spoke?

A. I -- I -- I really don't know.

Q. What was your impression of her mental state at that time?

A. I -- I -- I don't -- I -- I -- I can't say that I -- I had --

THE REPORTER: Sorry, Mr. Walsh.

BY MS. LLAGUNO:

A. -- any --

THE REPORTER: You cut out.

BY MS. LLAGUNO:

A. -- impression of her mental state.

THE REPORTER: Oh, stop.

BY MS. LLAGUNO:

A. I did have --

THE REPORTER: Mr. Walsh --

BY MS. LLAGUNO:

A. -- an impression of her -- oh.

THE REPORTER: Mr. Walsh, stop. Can you please start your answer? It -- it cut out.

BY MS. LLAGUNO:

Q. Could you repeat your response, Mr. Walsh?

A. I -- I had concerns, as I did before she left, about her ability to make decisions as it applied to the baby and -- and -- and living in San Francisco. As I said, I -- I never wanted her to go to San Francisco, nor did her mother. And we were very concerned about the baby being in the environment that the baby was in.

So I didn't necessarily judge her mental state or try to determine her mental state. It really had -- it wasn't something that I -- I -- I thought about much.

Q. And Maura Walsh is your wife, correct?

A. Maura Walsh is my wife. Correct.

Q. Were you aware that Tara called Maura and asked her and Steve to get her an emergency

psychiatric evaluation in March of 2018?

A. I don't recall that, no.

Q. Were you aware that Maura and Tara agreed that she should have emergency treatment with a doctor named Dr. Gopal in San Francisco?

A. I don't recall that, no.

Q. Did you discuss this with Tara or any other family members?

A. No. I do remember there was a time when a doctor called. Tara said that, you know, this guy, Dr. Gopal, is basically a paid pawn of Russell, and he's going to try to make decisions; can you talk to the guy? And I actually called Gopal, and he basically shared information about Russell and that -- that is, you know, patient-client privileged. And so I -- I knew right from the get-go that this guy Gopal was not to be trusted and -- and -- and ethically challenged. So that was --

Q. What did --

A. -- my -- my impression.

Q. What did Dr. Gopal share with you regarding Steve Russell that made you think that?

A. Gopal told me -- he -- he said that, you know, Steve Russell is -- is a whack job, is essentially what he told me.

Q. Your testimony here today is Dr. Gopal on a phone call told you that.

A. Yes, that's correct.

Q. And did you have any other conversations with Dr. Gopal?

A. No. I -- I -- I think it was at one time I was at a swim meet in a car with my -- by myself. I had dropped my daughter off at the swim meet when I called him. And -- and I think it was just that one time. I mean, after talking to him one time, I -- I didn't see any use in speaking to him again because, as I said, he -- he lost his credibility with me.

Q. What else did Dr. Gopal tell you about Steve Russell?

A. No. I -- I -- not much. It was nothing I recall. It was a conversation a long time ago, and it was a brief conversation.

Q. You stated that Dr. Gopal said Steve Russell was a whack job. Do you know -- were those his exact words?

A. No, no. It's -- I'm -- I'm paraphrasing.

Q. So what was the reason he shared that sentiment with you? Or I'm sorry. Let me rephrase that.

Do you know the basis for his statement?

A. I -- I -- I would just say it was, you know, there were -- there were numerous things that Russell was doing that -- that -- that led him -- and -- and -- and I think he was also trying to basically kind of force Gopal to say and do whatever he wanted him to as long as he kept paying him his fees. Russell has a history of using money to get people to do his bidding.

And -- and, unfortunately, Joyce (sic), I -- I kind of -- I -- I -- I view you the same way. You are -- you're not doing this case because it's ethically the right thing to do or because your client has a very valid charge and needs to be defended. I believe you're doing this because he's writing checks. And he had no lawyers in -- in San Francisco that would -- he -- he had lawyers, and -- and they basically -- I think that they realized they were pushing the ethical line, and -- and -- and that is why you in Pennsylvania are representing Russell in a case in California that has nothing to do with people who are in New York because he couldn't find any other lawyers to do it, thankfully.

Q. Okay. And I will turn back to what we had

marked as Exhibit 89.

A. Okay.

Q. And I want to turn your attention to where Steve Russell, this text message here -- Steve Russell states that Tara Walsh was "sad, angry, and distracted." Did you agree with that?

A. As I've stated before, having seen Stephen Russell in the few instances that I did, I did -- did not believe that anything he said -- I -- I -- I thought that anything he said could be inaccurate or, you know, deceitful.

Q. And in the same text message string, Steve Russell also states in this middle text message that Tara was "begs that I not break up with her." Do you believe that Tara begged Steve not to break up her?

A. I -- I have no idea, and I have no reason to believe that.

Q. Did Tara Walsh ever communicate with you that she wanted to stay with Steve Russell during her time in San Francisco?

A. I really don't recall. I would have suggested that she not if she had asked me.

Q. But you don't recall her stating --

A. No, I don't. I don't.

Q. Do you believe that Tara wanted to stay in a relationship with Steve Russell while she was in San Francisco?

A. I -- I have no idea.

Q. In the same text message, Steve Russell texted you that Tara was "not acting rationally, sobs for hours." Did you know this to be true?

A. I did not, no.

Q. Did Tara ever communicate with you about this?

A. Not to my recollection.

Q. In these text messages, Steve Russell also states that, "Absent you coming to get her, I don't think it's safe for her to fly or be alone with the baby right now." Did you believe that to be true?

A. I didn't believe anything he said to be true.

Q. Did Tara ever share the same to you?

A. There were times -- and -- and I don't have a very full recollection -- where she would just call and -- you know, and say that things were pretty crazy out there. And you know, again, I would say it was a decision you made to go out there that we didn't support, and -- and we emphasized that again and again. And we also emphasized that,

you know, if -- if the baby, if she needed to -- to come back, that we would -- you know, we would provide a safe haven and -- and atmosphere for -- for the baby. We were very concerned about the baby.

Q. So would it be fair to say you encouraged Tara Walsh to return to New York with the baby?

A. I -- I -- no. It -- it wouldn't be fair to say that. Tara is an adult. She made her own decision. She made her own decision to go to San Francisco. And when she returned, for the record, it was her decision. She's an adult. We could not force her to do anything. She -- you know, she knows the type of people we are. She knows the type of family we are. And we would never turn our backs on someone in distress, particularly an infant.

Q. And so did you encourage Tara to return with Evie to New York from San Francisco?

A. I -- I -- I did not.

Q. Did you have any concern for Tara's safety flying alone with Evie at that time?

A. None whatsoever.

Q. Steve Russell asked you to, quote, support me in getting her into a facility or fly out here and talk/meet with everyone before deciding to help

her back to New York if that ends up being what's best. Could you read your response to that text message?

A. Where is it, exactly?

Q. This first column. I can zoom in.

A. "I will do my best"?

Q. Yes.

A. Yeah, okay.

Q. Would it -- would it be fair to say that Steve Russell was depending on you to work with him to get the help Tara needed?

MR. MOORE: Objection.

BY MS. LLAGUNO:

A. NO.

MR. MOORE: It's argumentative; assumes facts not in evidence; lacks foundation.

BY MS. LLAGUNO:

A. No.

Q. And in this same text message string, this middle column, you texted Steve Russell, "She is cancelling the flight and returning. I will stay in touch." What flight were you returning -- referring to?

A. I -- I -- I -- I don't recall. I don't recall.

Q. Do you know if Tara was the one telling you that she canceled the flight and is returning?

A. Again, I don't recall, but -- but that might have been the case. I'm not saying it wasn't the case.

Q. During this time in early June, were you speaking to Tara about leaving?

A. I -- I really don't recall. I don't recall.

Q. And -- sorry. This same text message, you state that -- you texted Steve Russell, "Hopefully some solutions exist." What did you mean by that?

A. I -- I don't know. I don't know. Again, in -- in many of these interactions and -- and correspondences, I would -- I would -- I would humor him because I -- I -- you know, I viewed him as unstable and dangerous.

Q. So you -- with your responses, you wouldn't be completely genuine so as to humor him; is that --

MR. MOORE: Object -- objection; misstates the testimony; argumentative.

BY MS. LLAGUNO:

Q. You can respond, Mr. Walsh.

A. No response.

Q. You do not want to respond to that question?

A. That is correct.

Q. Can you give me the basis for your --

MR. MOORE: Objection. It's --

BY MS. LLAGUNO:

A. No.

MR. MOORE: -- argumentative. And it -- you know, and it misstates his testimony. So that's the basis for it.

MS. LLAGUNO: Mr. Moore, please do not coach the witness. I'm asking --

MR. MOORE: I'm not coaching. I'm instructing him not to answer. He's already decided not to answer. So move on.

MS. LLAGUNO: So you are instructing him not to answer that question? I just wanted to clarify.

MR. MOORE: He -- he -- I -- well, I will clarify that he himself decided not to answer the question, and -- and for -- there was a good basis for it. When you tried to put words in his mouth that misstate what he testified to, that's a problem. So he's a very competent witness here, and he can make these decisions himself. But I tend to

agree with his -- the basis for which he's refusing to answer your argumentative question.

MS. LLAGUNO: Mr. Moore, he was actually in the middle of responding before you interrupted him --

MR. MOORE: No, you're wrong. Just move on.

THE DEPONENT: I --

MS. LLAGUNO: Again, Mr. Moore --

THE DEPONENT: -- I am making the decision myself not to respond. It has nothing to do --

MS. LLAGUNO: Okay.

THE DEPONENT: -- with Frank.

MS. LLAGUNO: Got it.

Mr. Moore, again, can you let me finish my statement before you interrupt?

BY MS. LLAGUNO:

Q. So you do not remember, Mr. Walsh, the solutions you were referring to in this text message?

A. No.

Q. Do you remember solutions to what exactly you're referring to?

A. No.

Q. And in this same text message string,

Steve Russell texted you his belief that, quote, I think the first order of business is simply to fix the difficult living situation and get Tara to agree to allow you to act as her advocate. I am happy to be very flexible in where she lives, nanny, type of care, et cetera, end quote.

Could you read your response to this text message?

A. "I agree -- let me know how and when I need to be involved."

Q. So you agreed you should act as an advocate for Tara; is that correct?

A. I agreed that I -- I liked being involved in -- in -- you know, or -- or open -- communicating, know -- know about her wellbeing going forward. But again, I did not take anything Russell said as necessarily based in fact or reality because he is not a person that -- that lives in reality. And -- and I'm not -- and I'm not a stupid person, and -- and I'm not easily fooled. So I was never fooled by him into believing that what he said was accurate and sincere.

Q. So when you said you were in agreement that you should allow to act as her advocate, would you say you were being genuine in your response to

that text message, or were you again humoring him?

A. I was not -- I would say I was not entirely genuine. And again, I -- I was trying to defray what -- what I viewed as a caustic situation.

Q. So was your understanding of why Steve Russell believed Tara needed an advocate was because Tara was going through mental health episodes?

A. No.

Q. So what is your understanding of why Steve Russell wanted you to be involved as an advocate for Tara?

A. I have no idea.

Q. You don't believe Steve Russell wanted your help to help Tara through what she was going through?

A. No, no. I wanted -- I -- I -- I think Steve Russell wanted myself and everyone else to believe that he was a sane, competent individual. And -- and I think that was his main objective, to convince me that she was the crazy one and not him.

Q. And do you believe Tara to have mental health issues?

A. I don't. I -- like I said, I -- I -- I'm -- I -- I -- I have -- I do not believe that, and I could not diagnose her.

Q. And you do not know if Tara is seeking mental health treatment for mental health issues; is that --

A. No. That's her business. It's her business, not mine.

Q. So you do -- you don't know.

A. I don't know.

Q. And Steve Russell was supportive of Tara going back to New York with Evie for a visit; is that correct?

A. Like I said, he -- I don't know if he was or he wasn't. I -- I -- I didn't trust anything he said.

Q. So I'm going to scroll down these text messages. Isn't it fair to say that Steve Russell was working with you for a plan to have Tara visit New York temporarily with Evie?

A. That's not how I would view it, no.

Q. What is your understanding of why Steve Russell wanted -- was supportive of Tara visiting New York with Evie?

A. I have no idea. And this is drifting away from the -- from the case at hand and -- and drifting into this other ludicrous case that he's presented about kidnapping, which --

MR. MOORE: Yeah. I -- I would agree. This is --

THE DEPONENT: Yeah. And it's --

MR. MOORE: -- it looks like -- go ahead. Sorry.

THE DEPONENT: It's -- it's just more delusional nonsense.

MR. MOORE: And -- and for the record, Stephen Russell has filed a case in pro per alleging a conspiracy by Mr. Walsh, Maura Walsh, with Tara Walsh to abduct Tara Walsh's daughter from San Francisco to New York. He is not represented by his counsel in that case. It was filed relatively -- well, at least a couple years after this case was filed. He's split his causes of action, which is impermissible in California. And --

MS. LLAGUNO: Mr. --

MR. MOORE: -- and -- and -- and I will add that he has misrepresented his address on the pleading on the case.

Mr. Russell has filed a motion to quash. I served it to the address that is on Mr. Russell's pleading. It was returned as nondeliverable. If you research that on Google, the address he gave is of some business, certainly not one that's related

to him. He seems to be misrepresenting his address to the court. It's very unbecoming.

And it looks like you are trying to get discovery in that case, which is improper because there has been no answer in that case and discovery had not begun in that case. And it's improper to use another case to try to get discovery in a case that's not at issue.

MS. LLAGUNO: Mr. Moore, you are allowed to make your objections at deposition. But I please --

MR. MOORE: And I just did. So you don't need to argue with me about it.

THE REPORTER: Counsel, again, I understand you are attempting to do this. But please speak one at a time, or your record will not be clear.

So please -- please restate your statement, Ms. Llaguno. My apologies.

MS. LLAGUNO: Thank you, Monica.

Mr. Moore, again, while I am speaking, I give you the chance to do your improper speaking objections and do not interrupt you. Please stop interrupting me, and let me finish my statement. I allowed you to make your objection, albeit improper.

I'd like to ask you again to refrain from these longwinded speaking objections. You're allowed to make very succinct objections to my questions, but you cannot take up my deposition time to make these long, improper speaking objections, going in about the procedural history of another case that's not in front of us here.

MR. MOORE: I am going to make my record, and I will do it as -- on your dime as long as I want. You are improperly using and abusing the court system, and the record will reflect that that is such the case. It will be potentially before a court, and that is why I'm making my record.

Thank you.

MS. LLAGUNO: You can make your record with a succinct objection and not --

MR. MOORE: No. I have to explain your improper conduct.

MS. LLAGUNO: Mr. Moore, again, you're interrupting me.

MR. MOORE: Why do you insist on arguing with me? And just get to the task at hand, and finish this deposition.

MS. LLAGUNO: The court has noted four or five times now that you are the one interrupting me.

I have not once interrupted you in the middle of one of your statements. So I want to make that clear.

MR. MOORE: There's no court in session, so I don't know what you're talking about. But just move on.

BY MS. LLAGUNO:

Q. And Mr. Walsh, I am going to direct your attention to this last text message in Exhibit 89. Could you read what you texted Steve Russell?

A. Hold on a second. I seem to have messed something up here.

"Steve -- I'm very happy to hear she'll be coming to visit -- we are all very excited about seeing Evie -- all set up at our house to accommodate." Is that what you're referring to?

Q. Yes.

A. All right.

Q. So you confirmed with Steve Russell that Tara and Evie would be going to New York for a visit only, but would return with Evie to San Francisco; is that accurate?

A. No, that's not accurate. And again, if Tara was coming to New York to see us, that would be her decision. It would have nothing to do with us deciding if she was going to come to New York.

Q. Okay. And you mentioned earlier, Mr. Walsh, that Steve Russell had security personnel and that there -- so what -- there were times when Steve Russell was in New York with security guards; is that correct?

A. Oh, yeah.

Q. Do you have an understanding of why he had guards?

A. My understanding -- you want my personal take?

Q. Yes.

A. Is that what you're asking for -- was that he was delusional.

Q. Do you know one way or another whether Russia or Ukraine was after him?

A. No. No. I -- I -- I -- I do not.

Q. So you don't know whether security was necessary; is that correct?

A. I -- I -- I guess I don't know. But I mean, I -- I think a reasonable person would have assumed that it was delusion that was the primary motivator.

Q. So I'm going to show you now what we're going to mark as Exhibit 90.

THE REPORTER: It will be marked as

Exhibit 90.

(WHEREUPON, Exhibit 90 was marked for identification.)

BY MS. LLAGUNO:

Q. Can you see this document, Mr. Walsh?

A. Yes.

Q. Do you recognize this document?

A. Yes.

Q. And this document is an email from [redacted] to Audrey Courson. Is this an email from you, Mr. Walsh?

A. Yes. And Audrey, can you -- I can't remember who Audrey is. Is she an attorney in San Francisco?

Q. Well, do -- you don't have a recollection of who Audrey Courson is?

A. I don't, no. I -- I believe she was a counsel in San Francisco, but I'm not 100 percent sure.

Q. Do you recall if Audrey Courson was Tara's attorney?

A. I don't. I don't. I -- I think so, but I -- I don't. I'm telling you I don't. So ...

Q. Okay. And why did you write this to Audrey Courson?

A. I don't recall why I wrote it. It sounds to me like I wrote it, just from reading it, that I was explaining to this person that the baby being around Steve Russell was dangerous. It looks -- that's what -- yeah. I mean, I -- I think it's pretty obvious. You -- you tell me what you think I was saying.

Q. Do you recall if you submitted this statement in court?

A. I -- I don't recall that, no. But I -- I don't know if it was submitted to a court. Like I said, I -- I think Audrey was the counsel in San Francisco. You seem to know that, but you're not willing to share that with me.

Q. I just -- I don't want to impede on your testimony, your own recollection, Mr. Walsh.

My -- this email, you wrote -- could you read me here where it says, "She's seeing doctors"?

A. Yeah.

Q. Could you read the statement you wrote out loud, please, Mr. Walsh?

A. Currently, Tara has the support of her family and is doing fine. She's seeing doctors and maintaining a happy lifestyle -- a healthy lifestyle. Evie is surrounded by an extended family

and getting the best care possible. She is a happy and flourishing child. I am strongly convinced that her current situation is -- is the possible solution. It seems like I ...

Q. So you wrote that quote, "She's seeing doctors and maintaining a healthy lifestyle;" is that correct?

A. Yeah. Yeah. I -- I did write that. Absolutely.

Q. And you were referring to psychiatrists; is that correct?

A. I'm not sure I was. I'm not sure I was.

Q. What doctors were you referring to?

A. I'm really -- I -- I am not sure. I'm not sure. I think it was, you know, that she -- you know, she had -- she had come from a pretty traumatic situation in San Francisco. So she did need, you know, counseling and/or intervention that, you know -- from -- from professionals. I mean, it did -- the situation, as I said, in San Francisco was -- it was -- you know, it -- it -- not unlike someone returning from -- from a war zone where she was traumatized.

Q. So --

A. But I don't know the specific doctors I

was referring to.

Q. So you do believe around this time in July of 2018 that Tara was seeking mental health treatment; is that correct?

A. Yeah. I -- I -- I -- I guess it's correct. But yeah, I mean, again, I'm not -- I'm -- I'm not fully recollecting exactly what that would be or who it was with.

Q. Do you know if Tara was seeking --

A. Certainly -- certainly didn't imply that she needed to be institutionalized, or anything like that.

Q. Do you know if Tara was seeking for her -- her borderline personality disorder?

A. That -- that's kind of a silly question because I don't know if she -- I don't know that she was ever diagnosed with borderline personality deficit, or whatever you call it.

Q. Okay. And so in this email, you also write, quote, the entire time Steve was in New York. Could you read this one sentence, Mr. Walsh?

A. He was accompanied by security personnel, who -- all who agreed discretely that they were only humoring his fantasies.

Q. And you wrote that, correct?

A. I did, yes.

Q. Did you speak with Steve Russell's security personnel?

A. I did, yes.

Q. What were the names of the guards?

A. I don't remember, and -- and I wouldn't -- I wouldn't -- if I did, I wouldn't give you the names. And -- and, you know, of anything they told me in confidence I -- I wouldn't share with you.

Q. What specifically did they tell you?

A. In -- in so many words, that Steve Russell was batshit crazy. Excuse my language.

Q. And when did the security guards tell this to you?

A. I don't know exact time.

Q. Was it in response to a question from you?

A. No. No.

Q. They just voluntarily told you?

A. Oh, yeah. Yeah. I mean, they were -- they were trying to exclaim why they were there and what they were doing. And none of them had any -- in -- in fact, I believe that, you know, he would fire these guys routinely. And I also believe that, you know, there were some that were, like other professionals in his life, were just taking his

money.

Q. Did they ever -- I'm sorry. Let me rephrase.

Did the security guards ever explain to you that they reported to Steve Russell that there were listening devices in the walls?

A. They said that he was -- believed that there were listening devices in the walls and mirrors and even, like, overhead radar and, you know, all -- all -- all kinds of technology that paranoid people generally think that are -- are being used against them -- listening devices, bugs, hidden cameras, taped phone calls, whatever, you know. I think it was the -- the full gamut of conspiracy.

Q. So a secure -- sorry. Let me rephrase that.

So Steve -- so was there ever a security guard of Steve Russell that told you that they were the ones who informed him that they believed there were listening devices in his walls?

A. No. That never happened.

Q. Did any of the security guards inform you that they reported to Steve Russell that they had, indeed, found a listening device in Steve Russell's

walls?

A. Absolutely not.

Q. If they had reported that to you, would that change your understanding of the situation?

MR. MOORE: Incomplete hypothetical; misstates the record; lacks foundation.

BY MS. LLAGUNO:

Q. You can respond, Mr. Walsh.

A. I agree with Frank.

Q. I don't believe -- Frank can state his objections. But unless he directs you not to respond, you're able to respond.

MR. MOORE: I -- I will also state for the record that -- that Mr. Russell has ongoing litigation against his security people that he hired of which Ms. Llaguno has just recently substituted in as counsel for him in that case --

THE DEPONENT: Yeah.

MR. MOORE: -- in federal court in the Northern District. And she is attempting to seek discovery in that case impermissibly on a case that's very narrow in this case, which is a San Francisco Superior Court case, involving alleged dosing of Seroquel.

MS. LLAGUNO: And Mr. Moore, please

succinctly state your objection and refrain --

MR. MOORE: I just did. Thank you.

MS. LLAGUNO: -- proper objection. Again, please let me finish my statement before interrupting me. Just please uphold the rules of civility at this deposition.

Because the court reporter did not get my last statement due to your interruption, I'd like to remind you again to refrain from improper speaking objections. Please --

MR. MOORE: Stop arguing.

MS. LLAGUNO: Mr. Moore, please keep your objections succinct, and refrain from improper coaching and speaking objections.

Thank you.

MR. MOORE: Stop arguing.

MS. LLAGUNO: Would you like to say that one more time?

MR. MOORE: Stop arguing.

THE REPORTER: And counsel, when we are at a good stopping point, could we go off the record? We've been going for an hour and 40 minutes on the record.

MS. LLAGUNO: Okay. We can take a break. Let me - yeah, we can. That's fine. We can take a

break right now.

THE REPORTER: Okay --

THE VIDEOGRAPHER: Okay. The time is 1:39 p.m., and we are off the record.

(WHEREUPON, a recess was taken.)

THE VIDEOGRAPHER: The time is 1:53 p.m., and we are on the record.

BY MS. LLAGUNO:

Q. Mr. Walsh, I'm going to have the court reporter repeat the last question that was asked.

THE REPORTER: And the last question that was asked was, "If they had reported that to you, would that change your understanding of the situation?"

BY MS. LLAGUNO:

A. Not necessarily, no.

Q. Why not, Mr. Walsh?

A. Because you know, anyone that is pretty much in the employ of Mr. Russell generally cannot be trusted because information one way or the other, in -- in many cases, he's just paying them to -- to say things, so hence not necessarily.

Q. And do you have personal knowledge --

A. I don't.

Q. -- of --

A. I don't. Has he joined us on the call, by the way, Joy?

Q. No. No, Mr. Walsh, he has not.

A. Okay. And you -- you stated that you will let us all know if he does.

Q. Yes, I will. I believe we'll be able to see if he joins as well.

A. Okay.

MR. MOORE: Well, the problem is last time we weren't because he appeared by a phone. And unless he spoke, his name didn't pop up. It appeared under the Naegeli screen. And so it was very, very odd that that happened at Matan's deposition. So we would request that if he does join in by phone again, that his actual face appear on the screen and not just lurking in the background like he did at Matan's deposition.

BY MS. LLAGUNO:

Q. Going back to our questions, Mr. Walsh, I'm going to reshare what we were looking at prior -- before the break, which we've marked as Exhibit 90. So after you spoke with Mr. Russell's security guards while they were in New York, did you ever have any communications with them after that?

A. I -- I don't think I -- I -- I -- I don't

recall specifically, but I don't believe I did.

Q. Did you ever have any communications with Steve Russell's security personnel in -- while they -- in San Francisco?

A. No.

Q. We know that Tara and some of the guards were in communication by text message. Do you know who?

A. I have no idea.

Q. Do you know why Tara Walsh kept in communication with some of the guards through text message?

A. I have no idea.

Q. How did Tara feel about the security guards?

A. I'm not really sure. But I -- I -- I believe she felt it was creepy.

Q. And did Tara express this to you?

A. In -- in -- in -- I guess she kind of did, yeah. I mean, she would just say that, you know, having them around 100 percent of the time was very odd and very disconcerting.

Q. What else would Tara express to you about her -- the security guards?

A. Nothing that I recall.

Q. And in this email you sent to Audrey Courson, you mention that the security guards "were only humoring his fantasies." What were the fantasies the guards were referring to?

A. I think we've discussed that -- that he was being followed and spied upon by Ukrainian and other unnamed or imagined sources.

Q. And there was a time Steve Russell fired the guards; is that correct?

A. I have no idea. I believe so. I think it -- I think he told me, or maybe Tara told me, or someone told me or -- that. I -- I think he was firing guards and replacing them all the time.

Q. And do you have any recollection of the guards not showing up anymore?

A. Not really, no. It's not like I had personal relationships with any of them.

Q. Did anyone in your family keep in touch with the guards?

A. I strongly doubt it; not to my knowledge.

Q. One of the -- I'm sorry. Scratch that.

One of Steve Russell's security guards offered to help Tara with her custody case; is that right?

A. I have no idea.

Q. So you have no knowledge of one of the security guards offering to testify about Steve.

A. No.

Q. And you have no knowledge that they offered to testify about the fantasies that you mentioned in your email.

A. I really don't recall, no.

Q. And do you know if -- I'm sorry. Scratch that.

Do you know if Tara was really grateful for the guards offering to offer testimony in her custody case?

A. I have no -- I have no idea.

Q. And Tara talked to you about Steve Russell not paying the guards; is that correct?

A. I don't recall that, no.

Q. Did that subject ever come up?

A. Not that I recall, no. It wasn't something I really cared about.

Q. So you have no recollection of Tara wanting to help -- I'm sorry. Let me rephrase that.

So you don't recall Tara wanting to help the security guards get paid by Steve Russell.

A. No, I don't.

Q. And you wouldn't know how many times Tara

met with the guards after Steve Russell had fired them.

A. No. I wouldn't know that. No.

Q. And you don't have any knowledge of Tara texting the security guards regularly; is that correct?

A. I don't have any knowledge, no.

Q. And do you have any knowledge of a quid pro quo arrangement between Tara and Steve Russell's security guards?

A. No. I have no knowledge of that.

Q. You have no knowledge of the quid pro quo where they would offer to -- offer testimony in her custody case and help her in her case against Steve Russell and Tara Walsh would help get them paid.

A. I have no knowledge of that, no.

Q. Do you have any knowledge if she, in fact, helped them get paid?

A. I have no idea.

Q. Do you have any knowledge of Steve Russell's security guards helping her in any of her court cases?

A. No.

Q. Do you know if Tara is still in touch with Steve Russell's security personnel?

A. I have no idea.

Q. Brienne Walsh, your daughter, at her deposition testified that you became friendly with one of the security guards that was in the delivery room with the family. Do you remember him?

A. I remember the two security guards that were there, and the one guy was a former New York City policeman. And he knew people that I knew. But you know, we -- we had friendly conversations, but we did not become friends.

Q. Do you remember --

A. And I did not stay in touch with him or -- I -- I don't know much about him at all other than that he was NYPD.

Q. And to clarify, you said you -- you did not keep in touch with him, correct?

A. I absolutely did not keep in touch with him. That is correct.

Q. What was his name?

A. I don't know. I don't remember.

Q. And so that time in the delivery room was the only -- I'm sorry. Scratch that.

Oh, yeah. That time in the delivery room was the only time you spoke with that guard; is that accurate?

A. I think so. Maybe -- maybe in -- in the apartment in Brooklyn because they would, you know -- the -- they were still working at that point. So I don't -- I -- I don't recall specifically, but I may have talked to him when he was in Brooklyn as well.

Q. Do you remember how many times around you -- you've spoken with a security guard?

A. No.

Q. So other than at the hospital and the apartment in Brooklyn, you have not spoken to him other than those times; is that correct?

A. That's correct.

Q. What do you remember about what you two discussed?

A. Like I said, we discussed -- I discussed things about, you know, things in general. I -- I like to talk to people, and -- and I -- I engage in conversations with complete strangers at times. And we -- we -- it -- it was more general things. But you know, when -- when -- when -- you know, I -- I'm -- I'm not going to -- I'm not going to disclose things that I spoke to this gentleman about, in fairness to him. So ...

Q. Do you recall that you both talked about

being from the Bronx?

A. Yes.

Q. Do you recall --

A. That would make him -- that would make him just one of thousands of people I've had that conversation with.

Q. Do you recall also talking about baseball with him?

A. No, not really, but that's possible. You talk about the Bronx, you talk about the Yankees. So it's highly possible.

Q. And other than what you stated previously, what else did you talk about regarding Steve Russell?

A. I have no idea. I -- I -- I really don't remember.

Q. Did you ever talk to the security guard about the threats against Steve Russell?

A. I believe I did. I believe I did. And -- and -- and I believe that their opinion was that it was delusion.

Q. Other than this one security guard you spoke to at the hospital, did any of the other security guards express the same thing?

A. Again, I -- I think I need to protect

these guys. So I -- I'm not going to answer those questions because I'm sure Russell will sue them next. So I -- I'm not going to answer those questions.

MR. MOORE: He's already sued them, and that's why she's asking --

THE DEPONENT: Yeah, okay.

MR. MOORE: -- seeking discovery in -- for another case --

THE DEPONENT: Yeah --

MR. MOORE: -- on -- on your --

MS. LLAGUNO: Mr. Moore --

MR. MOORE: -- not -- not -- not --

MS. LLAGUNO: -- please stop --

MR. MOORE: -- subpoenaing you in -- in that case because, you know, it's in a different court. She's using this opportunity to find discoverable information for yet another case that Stephen Russell has brought up. It's highly improper behavior.

BY MS. LLAGUNO:

Q. And Mr. Walsh, did -- did you -- did you talk about Steve's mental health with a security guard?

A. No. I -- I -- I -- again, I'm not going

to answer questions about these guys because these guys have also, I believe, have to have, you know, ethical standards where they're not allowed to talk about things. So you know, I talked about the Bronx and baseball, yeah. And -- and that's all I'll tell you that I talked about.

Q. You've spoken with Tara about the security personnel Steve hired, correct?

A. Not specifically. I -- I'm not sure what you're referring to.

Q. Tara told various people she thought they were taking advantage of Steve; did she tell you this?

A. Okay. As I've said, Joy -- and -- and I'll say it again -- I think everyone that Russell employs, including yourself, takes advantage of him and takes his money while knowing that he's a person with severe mental disabilities. So do I think that the security guards took advantage of him without knowing specifically? I'd say that's highly possible -- not necessarily the two that you referenced, but some others. You know, I think that people generally take the guy's money because he's got a lot of it and he -- he gets, you know -- he's good financially for a lot of people, again,

including yourself. I -- that's the way I feel.

Q. And you've testified previously that you do not have any type of medical licensing to be able to diagnose someone with a mental disability; is that correct?

A. Like I said, to -- to -- to diagnose someone -- I -- I'm not giving a specific diagnosis. But I don't need a medical degree to -- to -- when -- when you witness that level of insanity. And --

MR. MOORE: And -- and -- go ahead. Finish your -- finish your response.

BY MS. LLAGUNO:

A. You don't -- you don't need a medical degree.

MR. MOORE: Yeah. And -- and by the way, counsel, you've been asking him about his opinion on numerous subjects in this case during this deposition. And you know, as you know, lay opinion is a proper basis for a witness to give. He doesn't have to have expert training in order to give a lay opinion. So you -- you -- you can't have it both ways. If you're going to ask him his opinion on things, he's entitled to give it. He's a layperson with an ability to give a lay opinion that's admissible under the Rules of Evidence in

California.

MS. LLAGUNO: And again, Mr. Moore, I allowed Mr. Walsh to testify as he pleased. I don't need your elongated speaking objections on the matter.

MR. MOORE: I'm making a record.

BY MS. LLAGUNO:

Q. Mr. Walsh, you've spoken with Tara about the security personnel Steve hired, correct?

A. I -- I -- I think I already answered that. I said that, you know, I -- not specifically. I'm not sure what you're referencing. But ...

Q. What -- what else has Tara told you about Steve Russell's security personnel?

A. She hasn't told me much about her security -- his security personnel. I told you about my own individual experience with his security personnel. But I -- I -- I did not have -- you know, other than that they were omnipresent and, you know, around all the time, I don't know them individually other than those two gentlemen that I met at the hospital, who I won't discuss further.

Q. And Brienne at her deposition also testified that you and she both believed there were no actual threats against Steve; is that true?

A. I have no idea what Brienne believed. And -- and so ...

Q. But you personally do not believe there were any actual threats against Steve Russell; is that correct?

A. I -- I -- I highly doubted that there were.

Q. For example, you believe there were no Russian spies tailing Steve Russell, correct?

A. I did not believe that there were, no.

Q. Did you believe there were any other threats to Steve Russell's safety?

A. I -- I didn't give it much thought.

Q. Are you familiar with Neer Naman?

A. No.

Q. Are you familiar with George Akkelquist?

A. Nope.

Q. Are you familiar with Ryan Micheletti?

A. No. There was on security guy he brought with him to New York that I met briefly in the -- in the White Plains courthouse. But I -- I don't know the guy's name, or I don't remember much about him at all.

Q. Could you describe what he looked like?

A. I can't, no. Caucasian, male Caucasian.

Q. Are you familiar with Albert Timen?

A. Nope.

Q. Are you familiar with Raven Shlomo?

A. Nope.

Q. Are you familiar with Joe Prendergust?

A. No.

Q. You don't recall who he is?

A. No.

Q. Do you recall ever meeting a Joe Prendergust?

A. No. I mean, it -- the name is not a familiar name to me.

Q. Has Tara ever talked to you about Mr. Russell being "conned" by his security team?

A. I don't know if she's ever mentioned that to me, no. I think I drew that conclusion myself.

Q. So you've never discussed with Tara about Steve Russell being conned by his security team.

A. No, not specifically. And -- and if it -- if we did discuss it -- and -- and I'm trying to recall -- it would have been empathetically whereas she was concerned that they were taking advantage of him. But I -- I don't remember specifics, no.

Q. We discussed earlier about Steve supporting Tara's decision to go back to New York

with Evie for a visit. And in June of 2018, Tara had spoken with you about moving back, correct?

A. No.

MR. MOORE: Misstates the record.

BY MS. LLAGUNO:

Q. Did you help Tara with her move back to New York from San Francisco?

A. No.

Q. Were you aware there was a restraining order preventing either her or Steve Russell from removing Evie from the State of California without each other's written consent?

A. No.

MR. MOORE: Assumes facts not in evidence --

BY MS. LLAGUNO:

A. Yeah, that --

MR. MOORE: -- lacks foundation.

BY MS. LLAGUNO:

A. -- has nothing to do with anything we --

THE REPORTER: Mr. Walsh, can you please repeat your answer.

And I'd just like to stipulate for the record if you continue to talk over each other, the reflect will reflect as such, and it will not be

clear.

Please repeat your answer, Mr. Walsh.

BY MS. LLAGUNO:

A. No. My answer is no.

Q. And Steve Russell believed that Tara was only visiting New York for a vocation; is that --

MR. MOORE: That's not a question. That's not a question. That's not a question.

BY MS. LLAGUNO:

A. I -- I -- I can answer it again. And I'll say Tara is an adult. Any decision she makes about where she lives is her decision and her decision alone. I did not, you know, throw a net around Tara, put her over my shoulder, and throw her in the trunk and drive her to my house and tell her she couldn't leave or I would harm her. I didn't do that, no.

She's an adult. She made a decision to come to New York. I didn't know what her plans were. I certainly didn't think that she was coming back to stay in our house permanently. Things evolved as they did, and -- and it had very little or nothing to do with me or my wife.

Q. But based on your own understanding, Steve Russell believed that Tara was only visiting for a

vacation.

A. I -- I don't know what Steve Russell believed. And as I've stated numerous times in here, anything Steve -- Steve Russell believed was, from my perspective, something that I didn't necessarily want to believe.

Q. And that includes Steve Russell's belief that Tara would return with Evie to San Francisco?

A. I don't -- I don't know what that has to do with anything. I don't know. You tell me. What was his belief?

Q. In -- would you like to respond to my question?

MR. MOORE: No. I -- I think he's -- he's a better lawyer than I am. That's an extremely good answer.

BY MS. LLAGUNO:

Q. And just to clarify, Mr. Walsh, you are refusing to respond to the last question?

MR. MOORE: No. He did --

THE DEPONENT: I -- I --

MR. MOORE: -- respond.

BY MS. LLAGUNO:

A. Yeah, no. I did respond. I said I had no idea what he believed.

MR. MOORE: Calls for speculation, belatedly, was the objection. But that's exactly right. He can't get into Steve Russell's head. Neither can you unless he told you something.

BY MS. LLAGUNO:

Q. So why did you allow Steve Russell to believe that Tara was only going on vacation?

MR. MOORE: Assumes facts not in evidence; lacks foundation --

THE DEPONENT: I never --

MR. MOORE: -- argumentative. This is really getting way off base because it's -- it's silly now. You're -- you're just making up stuff.

BY MS. LLAGUNO:

Q. Mr. Walsh, I believe you were responding before Mr. Moore's speaking objection.

A. I have no idea what Steve -- what goes through Steve Russell's mind. I -- I -- I -- I didn't make any statements promising him.

And -- and as I said, we're -- we're going around in circles here. Tara makes her own decisions, you know. She's an adult. I believe Tara is 36 years old, okay? She's not a kid that, you know, I tell her if you don't eat your vegetables, you're going to bed without dessert. So

I -- I don't -- I don't know what you're getting at.

Q. Weren't you in contact with Steve Russell preparing for Tara's visit?

A. No.

Q. You were not in contact with Mr. Russell preparing for Tara's visit?

MR. MOORE: Asked and answered --

BY MS. LLAGUNO:

A. I never -- I never believed that Steve Russell had the right to say whether Tara could visit or not. I mean, who -- who would think that that was the case, that another person, an adult, was making the decision whether or not she could come to New York. I couldn't make that decision. Steve Russell couldn't make that decision. The only one that could make that decision was Tara because she is an independent adult.

Q. But you did, in fact, testify that you were not aware there was a restraining order prohibiting Tara from leaving the State of --

A. I --

Q. -- California --

A. -- testify that. Yes, I did.

MR. MOORE: Assumes facts not in evidence --

THE DEPONENT: Yeah. So --

MR. MOORE: -- argumentative.

THE REPORTER: Stop. Please repeat the question, answer, and objection.

BY MS. LLAGUNO:

Q. I believe my question was: Mr. -- Mr. Walsh, I believe you testified previously that you were not aware there was a California court order restraining Tara from leaving the State of California with Evie; is that --

MR. MOORE: Object --

BY MS. LLAGUNO:

A. I didn't state that. So what -- why are we asking it again?

MR. MOORE: Assumes facts not in evidence is my objection.

THE REPORTER: I -- I note your objection.

Please repeat your answer, Mr. Walsh. It keeps getting cut off.

BY MS. LLAGUNO:

A. Oh, I'll -- I'll -- I guess I'll repeat it for the third time or fourth time. I had no idea that there was any restraining order. And again, it wouldn't have mattered because it was Tara's decision to leave, not mine.

Q. You agreed with Steve Russell, however, that you would pick Tara up from the airport; didn't you?

MR. MOORE: Objection --

BY MS. LLAGUNO:

A. I agreed with --

MR. MOORE: -- argumentative.

BY MS. LLAGUNO:

A. -- I agreed with Tara that I would pick her up at the airport.

Q. And you don't recall stating that to Steve Russell?

A. I don't recall stating that to Steve Russell. And I don't see why I would need to state that to Steve Russell because, as I've said again and again, Tara is an adult who makes those decisions for herself.

Q. At the time --

A. If Steve Russell told me -- called me up and said, you know, make sure you give Tara broccoli and -- and -- and pasta for dinner, I wouldn't say, oh, yeah, Steve Russell told me to feed you this and you're going to eat it. It's -- it's absurd. It's ludicrous.

Q. At the time Tara was going to New York for

a visit, did you believe she was going to return to San Francisco?

A. I -- I had no idea.

Q. But you didn't want her to -- to go back to San Francisco; is that right?

A. I believe I --

MR. MOORE: Objection.

BY MS. LLAGUNO:

A. -- stated that earlier. I never -- I never wanted her to go to San Francisco. I thought that the environment for the baby in San Francisco was pure lunacy. And -- and no. So at that time, she was coming this way. I didn't know whether she'd go back. But again, it was her decision.

Q. And yet you lied to make Steve Russell believe that you were encouraging her to return to San Francisco; didn't you?

A. That --

MR. MOORE: Objection; argumentative.

You don't have to answer that question. She's just arguing with you --

BY MS. LLAGUNO:

A. I didn't lie about anything.

Q. I'm going to show you now what we're going to mark as Exhibit 91.

THE REPORTER: Marked as Exhibit 91.

(WHEREUPON, Exhibit 91 was marked for identification.)

BY MS. LLAGUNO:

Q. Do you recognize this document, Mr. Walsh?

A. No.

Q. And let me scroll down. I'll show you the second page. Does this refresh your recollection?

A. No.

Q. And this third page, you don't recognize it either?

A. No.

Q. And so you stated your email address is [redacted]; is that correct?

A. Yes. It -- it -- it's obvious this was sent to my email. Yes. So what are your questions?

Q. Is this an email between you and Steve Russell?

A. It appears to be, yes.

Q. And what is the date of this email correspondence?

A. What does this have to do with Tara drugging Steve Russell in San Francisco about the alleged case? This is more to do with this idiotic kidnapping charge? What -- what -- what is this?

You know, I mean, if -- if this -- these are the questions you're going to ask me, we should just stop this thing now because this is complete nonsense.

MR. MOORE: I would join in that. I think you are now definitely trying to -- or do discovery in a case that's not at issue, that's -- you're not representing Mr. Russell is, that he's filing pro per, that he's misrepresented his address to the court, and which there's a pending motion to quash. So -- and if that's where you're going with this, you're going to have to stop because it's improper.

MS. LLAGUNO: And our position is we are entitled to discovery on Mr. Walsh's communications with Steve Russell and on Tara's credibility.

MR. MOORE: Not about this subject matter when you have a separate lawsuit.

MS. LLAGUNO: So are you directing the witness not to answer?

MR. MOORE: I'm saying it's improper, and he can do what he wants.

MS. LLAGUNO: So --

MR. MOORE: I can -- I -- I can represent that it's an improper use, and it's actually a misuse of the discovery process in California that

is actually sanctionable conduct. I've brought motions like that before. When you have a case that -- that there's no jurisdiction over a party, a party's been named, he's got a motion -- a pending motion to quash, resisting jurisdiction, and you're trying to do discovery in that case when discovery is not even allowed to be begun until there's an answer on file, yeah, it's entirely improper. So --

MS. LLAGUNO: I --

MR. MOORE: -- you know, Mr. Walsh is an adult. He -- he seems to be very, very well equipped to know his rights. I'm making statements for the record as to the misuse of the discovery process that you're engaged in.

MS. LLAGUNO: And Mr. Moore, I'd like to remind you to keep your objections succinct. You may not coach the witness or provide these long speaking objections.

MR. MOORE: That is about as succinct as it gets, given the -- the numerous improprieties of your behavior.

MS. LLAGUNO: And our position is, regardless of in this litigation, these questions are within the square -- squarely within the scope of discovery.

MR. MOORE: No, they're not.

MS. LLAGUNO: Well, we can take it up with the court, but please refrain --

MR. MOORE: You --

MS. LLAGUNO: -- from arguments at this deposition.

MR. MOORE: You should -- you should bring it up with the court because that's where you will be sanctioned.

BY MS. LLAGUNO:

Q. Mr. Walsh, in these emails, Steve is communicating with you about Tara while she was in New York supposedly on vacation, correct?

A. I have no idea.

Q. Did you review the document that I'm showing you?

A. I read what -- you could -- you -- you sent the first page. I also see the subject of it is Settlement Proposal, which is again him dictating things that -- that he insists or believes should happen. And it -- it's just more of the -- the -- the same consistency of absurdity and delusion.

Q. Okay. And I'd like to point your attention to -- I'm going to pull up the correct page.

But you did receive these emails; is that correct, Mr. Walsh?

A. It appears I did, yes.

Q. And they're dated about June 15, 2008; is that accurate?

A. That's what it says.

Q. So in these emails, Mr. Russell states that Tara was seeking treatment for a variety of conditions, including borderline personality disorder.

MR. MOORE: Assumes facts not in evidence; lacks foundation. That's not a question.

MS. LLAGUNO: I'm trying to pull up the correct page number.

BY MS. LLAGUNO:

Q. And if I can direct your attention here under paragraph 1 where Steve Russell emailed you that one of the conditions would be that "Tara enter the year long program recommended by her therapist or alternative program her care givers and we agree is appropriate." Who is the therapist referenced here?

A. I have no idea.

Q. So you don't know the therapist and the treatment Mr. Russell is referring to in this email.

A. I do not, no.

Q. You never spoke with Mr. Russell regarding a specific therapist and specific treatment?

A. No, not that I recall.

Q. And in -- oh, I'll just share this. And Steve Russell also emailed you lower down the chain on June 15, 2018. Could I direct your attention --

A. If --

Q. -- to this paragraph?

A. -- you say so.

Q. Steve Russell states the bottom line is that Tara is in a tough place, needs support, and is not making great decisions. She's committed serious acts, like crimes, in drugging me, taking money, conspiring to run off with Evie, and frankly worse.

What was the tough place that Tara was in?

MR. MOORE: Calls for speculation.

BY MS. LLAGUNO:

A. Yeah. Whatever tough place Russell thought she was in since he's --

Q. Do you know --

A. -- the one making the determination. So none of this is two-sided. This is all presented by Russell and -- you know, and -- and Russell's interpretation of things. And so it really has no

basis in -- in reality away from Russell.

Q. So you do not believe that Tara was in a tough place while she was in San Francisco.

A. Oh, yeah. She was in a tough place because she was living with a lunatic. So yes, she was in a tough place.

Q. So that is what you believe the tough place that Tara was in to be?

A. No, no. Russell would not refer to himself as a lunatic, so he's not saying that. But he is still -- these are all in Russell's words. They're not in Tara's words. They're not in my words. They're in Russell's words.

Q. And I'm asking you: What do you believe the tough place that she was in?

MR. MOORE: It's irrelevant.

BY MS. LLAGUNO:

A. Yeah, yeah. What -- what tough place are you talking? Are you talking about the tough place that Russell references in his email here? That's -- so what -- what are you asking me, exactly?

Q. So do you agree or not agree that Tara Walsh was in a tough place while she was in San Francisco?

MR. MOORE: Agree with what? Agree with -

- with --

BY MS. LLAGUNO:

A. Yeah. Agree with what? What --

MR. MOORE: -- Russell?

BY MS. LLAGUNO:

A. -- she was in a tough place? Explain what you define is a tough place.

Q. Independent of this email, do you believe Tara Walsh was in a tough place while she was in San Francisco?

A. She was in a situation that was horrific with a person who was tremendously unstable.

Q. So you -- you believe that -- your understanding of what a tough place that Tara was going through is different from --

A. No. I did not say that, and you know I didn't say that. Russell says it here. You define for me what Russell believes a tough place is, okay? Now, you're just -- you're -- you're not being fair here, and -- and you know exactly what you're saying. And you're trying to get me to say something I'm not going to say. I don't know what Russell is --

MR. MOORE: Yeah. That's --

BY MS. LLAGUNO:

A. -- referring to --

MR. MOORE: It's totally --

BY MS. LLAGUNO:

A. -- all right?

MR. MOORE: -- argumentative.

BY MS. LLAGUNO:

A. You tell me what Russell is referring to.

Q. So you do not know --

A. No, I don't. I don't.

Q. -- he's referring to --

A. I don't.

Q. -- when he put that --

A. Let's move on. I don't, no.

Q. And you do not know what the serious acts are that he's referring to in this email?

A. I have no idea. You know, we -- we live in Chappaqua, and Hillary Clinton lives in Chappaqua. And as you know from QAnon, which I imagine that Russell is a big fan of, you know, she kills babies and eats them. So maybe Steve was concerned that her being -- Evie being in Chappaqua, she could be subject to the same cobble of, you know, these people. So now -- now I can sort of understand his -- his concern more.

MR. MOORE: Yeah. I was going to say the

whole --

BY MS. LLAGUNO:

A. (Audio disruption) yourself, Joy, because conspiracy theories seem to run through this testimony.

MR. MOORE: Exactly. It sounded like QAnon --

MS. LLAGUNO: I --

MR. MOORE: -- as a -- as a basis of the question, it sounds QAnon-ish.

Can -- do you have more? I mean, let -- this is real far afield from what the case is about. So where -- where are we going with this?

MS. LLAGUNO: Yes. Mr. Moore, again, I'd like to remind you to stop with your improper speaking objections and insults on the record --

MR. MOORE: I'm -- I'm -- you know, you're -- you're -- you -- it sounds like you're out of questions. Do you have something for this witness that is relevant?

MS. LLAGUNO: Yes. We -- our position is it's all relevant.

MR. MOORE: No, it's not. You know it's not. So let -- let's get to the task at hand of what the case --

THE DEPONENT: Yeah. Let's --

MR. MOORE: -- is about.

BY MS. LLAGUNO:

A. Let's -- ask me some real questions, Joy, and -- and let's get -- you know, if there's answers I can provide that have anything to do with the case, I will do that. But if you're just going to keep going around in circles and make ridiculous presumptions or ask me to answer questions that I couldn't possibly answer, let's -- let's finish it up.

Q. In this email, Steve Russell emailed to you that, "She's threatened suicide on multiple occasions, has unpredictable reactions to her meds and alcohol, and recently suffered a full-blown delusion that led to an unavoidable accident with Evie."

A. I -- I didn't --

Q. Has --

A. -- I --

MR. MOORE: That's not -- there's -- there's not --

BY MS. LLAGUNO:

A. -- didn't --

MR. MOORE: -- a question pending -- not a

question pending. Don't -- no -- no answer is required.

THE REPORTER: Stop. Please -- please do speak one at a time.

I would like to stipulate for the record that, if you do not speak one at a time, the record will reflect as such, will not be clear. So before we move forward, do you agree that the record --

MR. MOORE: You know --

THE REPORTER: -- will not be clear if you do not speak one at a time --

MR. MOORE: We -- we know this. Court Reporter, we know this. We heard this many times from you, and you -- you're really starting to get on my nerves, okay?

THE REPORTER: All right. We can go --

MR. MOORE: So you know --

THE REPORTER: -- we can go off the record at this time --

MR. MOORE: No. You -- you can do your job and stop interrupting us.

THE REPORTER: It is impossible to keep a clear record if you keep interrupting. So before we move forward, I would like to stipulate that the record will not be clear if you keep doing that --

MS. LLAGUNO: And --

THE REPORTER: -- this deposition. So --

MR. MOORE: We --

THE REPORTER: -- before we move forward --

MR. MOORE: -- we -- we might --

THE REPORTER: -- I'd like to stipulate --

MR. MOORE: -- get a better court reporter because, you know, I --

MS. LLAGUNO: Mr. Moore, please --

MR. MOORE: -- this stuff happens all the time in --

MS. LLAGUNO: -- please don't insult --

MR. MOORE: -- depositions.

MS. LLAGUNO: -- the court reporter. The last court reporter made the same comment saying she cannot get a clear record because of your interruptions. So please stop interrupting when someone is speaking.

MR. MOORE: You -- you --

MS. LLAGUNO: Mr. Walsh --

MR. MOORE: -- need to ask --

MS. LLAGUNO: -- was speaking --

MR. MOORE: -- ask a question --

MS. LLAGUNO: -- Mr. Walsh --

MR. MOORE: -- that's reasonable.

MS. LLAGUNO: I'm speaking. Please wait until I'm finished speaking, and then you can speak. That is how a deposition works. One person speaks at a time. Thank you, Mr. Moore.

Mr. Walsh was speaking, and you interrupted what he was testifying. So I'd appreciate if you don't do that again. You have to let your client speak. You cannot coach him to not speak.

MR. MOORE: I'm not coaching. I am stating things for the record. This Zoom process is not very conducive because there's not enough delay between your question, his answer, my ability to get an objection in before he answers.

So if the court reporter can't keep up with it, then everyone's going to have to slow down and give some pause between so I can get my objections in. The court reporter doesn't seem to have the capacity as what -- what I've seen in California to be able to do this type of work.

But nevertheless, I think we need to get back on track what the case is about. And if you would ask -- ask him questions about that, then we can get done.

MS. LLAGUNO: Mr. Moore, please refrain from insulting the court reporter, or anyone else on this deposition for that matter.

Thank you.

BY MS. LLAGUNO:

Q. Mr. Walsh, back to my questions. Are you aware of how many times Tara Walsh has threatened suicide?

A. No.

Q. Do you know what meds are being referred to here?

A. No.

Q. Do you know what the unpredictable reactions are that are being referred to in this email?

A. No.

Q. Do you have any knowledge as to what the full-blown delusion is being referred to in this email?

A. No.

Q. So Tara Walsh -- has Tara Walsh ever communicated to you that she was going through delusions?

A. No.

Q. You also are not aware of what the ongoing

treatment being referred to in this email is?

A. Nope.

Q. So Tara Walsh never communicated to you that, while she was in San Francisco, she was going through ongoing treatment.

A. No. I -- I -- I didn't know the details.

Q. Since Tara turned 18, did you ever have power of attorney over her?

MR. MOORE: Objection; privacy.

BY MS. LLAGUNO:

A. Not going to answer that.

Q. Were you ever part of a discussion where it was discussed that you would have had power of attorney over her?

A. No.

Q. And I just wanted to clarify for the record you do -- you're refusing to respond to the question of if you've ever had power of attorney over Tara; is that correct?

A. Yes.

Q. In the discussion that you -- regarding having power of attorney over her, who else was present? Or sorry. Did you -- was anyone else present when you spoke about a power of attorney?

MR. MOORE: Just to --

BY MS. LLAGUNO:

A. I --

MR. MOORE: -- is this -- hold on. Hold on. Let me -- let me -- is this about --

BY MS. LLAGUNO:

A. -- didn't --

MR. MOORE: -- when she's 18?

MS. LLAGUNO: I said any time after she turned 18.

MR. MOORE: Okay.

BY MS. LLAGUNO:

A. No. You asked me, Joy, if I ever had the recollection or did I, or whatever. And then you pretty much asked the same question, right?

Q. Okay.

A. You asked the same --

Q. We'll move on. And in this email, could you read what you wrote to Steve Russell on June 15, 2018, at 4:48 p.m.?

A. I don't see any email.

Q. Sorry. Do you see the email now?

A. All right. So? I don't have to read it aloud. You can read it. I -- I -- I just read it. Sure.

Q. So turn -- and so in this email, you

assured Steve Russell that Evie was safe, right?

A. Yeah.

Q. So Tara and Evie were with you at this time; is that correct?

A. Yes.

Q. And in the email above, he, Russell, reminds you about the restraining order; isn't that right?

A. I had nothing -- I -- I have no idea. I have no idea. Like I said, I wouldn't -- I wasn't aware of a restraining order. I -- I made that clear. And if Steve Russell told me there was a restraining order, I wouldn't have held any -- I -- I wouldn't have given it any credence because it wouldn't have mattered. What -- who is it -- it's not like he's a member of law enforcement or the court telling me that Tara has a restraining order. It's Steve Russell acting independently telling me something that I don't recall anyway. So no.

Q. In response to Steve Russell stating, "As you know the lifting of Tara's restraining order," in response to that email, you responded, "Understood Steve -- I have advised her to stick to the original plan/agreement;" is that -- isn't that accurate?

A. I -- I have no idea what -- what -- what I was referring to there.

Q. This response, this -- you wrote this response; is that accurate?

A. It appears I did, yes.

Q. But you don't recall what you were referring to.

A. Nope.

Q. I'm now going to show you what we're going to mark as Exhibit 92.

THE REPORTER: Marked as Exhibit 92.

(WHEREUPON, Exhibit 92 was marked for identification.)

BY MS. LLAGUNO:

Q. Mr. Walsh, do you recognize this document?

A. No. There were so many documents that he sent me over the -- but, yes, it appears that this was sent to me by Steve Russell --

Q. And --

A. -- on June 22nd, 2018. So I acknowledge its existence.

Q. And this is dated just two days after the last email conversation we were looking at in Exhibit 91, right?

A. Yeah. Yeah. Yep.

Q. I'm going to point you to Steve Russell's email to you first.

A. Yeah.

Q. Could you review this first paragraph?

A. No. Why don't we go to the last paragraph where it says good news. I think it will give us a chance to cheap -- cheaply and quickly resolve and will almost certainly grant Tara the freedom to choose where she wants to live.

He's basically saying that he's the one that is going to make the decision on her freedom based on if certain conditions are met. I mean, if that doesn't tell you the -- the -- the -- the -- the contents of the type of stuff, the -- the -- the level of control and -- and -- and insanity, that paragraph says it all.

So go ahead, ask me your questions.

Q. So Steve Russell emails you that, based -- quote, based on my conversations with Tara, it's pretty clear that she intends on violating the California restraining order and I think it might just be to go to actual mediation next month.

And what -- could you read your response to Steve Russell?

A. I -- I -- I -- I read it. Yep. Sure.

Q. And you state to Steve Russell, "I am getting mixed messages as to Tara's intentions and will need to discuss further -- we'd like her to commit to staying with us as we've discussed;" is that accurate?

A. That's what I wrote, yeah.

Q. What did you mean regarding "mixed messages as to Tara's intentions"?

A. I -- I have no idea.

Q. Do you know if she intended to go back to San Francisco?

A. I have no idea.

Q. But you wanted her to stay in New York; is that accurate?

A. She's an adult. She -- wherever she ended up going, it would have been her decision.

Q. Even though it was in violation of a court restraining order?

A. That had --

MR. MOORE: Assumes --

BY MS. LLAGUNO:

A. -- nothing to do with me. Court --

MR. MOORE: Assumes facts not in evidence.

BY MS. LLAGUNO:

A. -- which -- which I think, in retrospect,

didn't actually exist anyway. Otherwise, she would have been in violation. And it was dismissed by the court. So you're talking -- you're -- you're asking me to agree that she violated a restraining order that has since -- that -- that no longer exists and that I had nothing to do with. So what -- what -- what are you trying to determine here?

Q. I'm just wanting an ask -- answer to my question, Mr. Walsh.

MR. MOORE: He answered it. Move on.

BY MS. LLAGUNO:

Q. As you know, there have been family law proceedings between Tara and Steve Russell in both San Francisco and New York. Brienne wrote a letter to the judge in the San Francisco proceeding in which she stated that Brendan told her that Steve Russell had beaten Tara unconscious. Did Brendan tell you this as well?

A. I don't know if he told me that or not; no recollection.

Q. Has anyone ever told you that Steve Russell beat Tara unconscious?

A. I -- I don't -- I -- I don't recall, no. I -- I -- I don't -- no.

Q. And you don't recall Tara Walsh ever

telling you that then; is that correct?

A. No recollection.

Q. Do you know why Brendan believed why Tara Walsh -- I'm sorry. Let me rephrase.

Do you know why Brendan believed that Steve Russell had beaten Tara Walsh unconscious?

A. You'll have to ask Brendan.

Q. Do you know if Tara told him that -- why?

A. You'll have to ask Tara and Brendan.

Q. Are you aware that Tara testified under oath that that was untrue and Steve Russell had never beaten her unconscious?

A. I have no idea.

Q. Tara's attorney also submitted a letter to the judge from your wife, Maura Walsh. Why didn't you submit a letter to the judge?

A. I have no idea.

Q. Do you know why Brienne wrote Maura's letter for her to the judge?

A. No -- no idea.

Q. Tara has also claimed that you threatened to sue her for custody of Evie if she moved out of your house; is that true?

A. No.

Q. Do you believe Tara is unfit to care for

Evie on her own?

A. No.

Q. Do you think Evie would be safe living with Tara on her own?

A. I believe Evie would be safe, yes.

Q. Do you know when Tara and Steve began dating?

A. I have no idea.

Q. Do you know how Tara met Steve Russell?

A. No idea.

Q. Prior to Tara being in San Francisco, did you ever speak with Tara regarding Steve Russell?

A. He came to our house one time for Thanksgiving. I don't -- I don't know when it was. If it was before that, after that, I really don't know.

Q. On --

A. First time I met him, I didn't know anything about him.

Q. What was your impression when you met him at Thanksgiving?

A. I really tried to like him. He -- he seemed to be friendly. But we didn't have enough of an engagement to -- for me to really draw any kind of opinion.

Q. Do you know who Tara's closest friends were at the time?

A. No, I don't.

Q. Do you know who Jesse Ozeri is?

A. I know Jesse. I've met Jesse. Sure.

Q. Who is he?

A. He's a friend of Tara's. You -- you said -- said that yourself.

Q. What is his relationship to Tara? Do you think they're close?

A. I have no idea. They're -- they're friends.

Q. Do you know if he has a relationship with Mr. Russell?

A. I have no idea.

Q. Do you know who Rashmi Narendra is?

A. I know who Rashmi is. I don't know her last name. If it's the same Rashmi, I've met her as well. She's a friend of Tara's. Outside of that, I know almost nothing about her.

Q. And have you ever spoken with Rashmi regarding Steve Russell?

A. No. Never.

Q. Have you ever spoken with Jesse Ozeri regarding Steve Russell?

A. Never.

Q. Do you know who Rosario Lardiere is?

A. That's another friend of Tara's.

Q. Do you know if they're close?

A. I have no idea.

Q. And have you ever spoken with Rosario regarding Mr. Russell?

A. Absolutely not.

Q. Have you ever spoken with Matan Gavish regarding Mr. Russell?

A. Nope.

Q. And did you say the first time you met Steve Russell was at Thanksgiving at your house?

A. To the best of my recollection, yes.

Q. And to the best of your recollection, how many times have you met Steve Russell in person?

A. Outside of that, I met him at the hospital and then in Brooklyn at the apartment. So it's -- it's less than, you know, maybe three or four, at most.

Q. And from the time Tara and Steve started dating to Tara becoming pregnant with Evie, how many times did you see Tara?

A. How many times did I see Tara? I have no idea.

Q. You never personally witnessed Steve be physically abusive towards Tara; is that correct?

A. That's correct.

Q. Did Tara ever tell you that Steve had hurt her or abused her prior to giving birth to Evie?

A. I really don't recall. I -- I -- I didn't -- I -- I didn't have much knowledge of the guy one way or the other until Evie -- until she became pregnant with Evie.

Q. So after became -- she became pregnant with Evie, did Tara ever tell you that Steve had hurt her or physically abused her?

A. I -- I don't remember specifics, but I -- I seem to think that she did mention it one time when she was in San Francisco.

Q. What did she say?

A. I -- I don't -- I'm -- I'm -- I'm going to say I -- I -- I -- I really don't know. I really don't know.

Q. Did you do anything about it when she did tell you that?

A. If I had felt that she was physically abused, I probably would have done something, but I don't -- I would have told Tara to get out of the situation as fast as should could. So -- but --

but, no, I have no -- no recollection.

Q. Do you believe that Tara was physically abused by Steve Russell?

A. I -- I don't know what to believe, yes or no. So I don't know how to answer that.

Q. Have you ever reported Steve Russell to the police?

A. Have I reported him to the police? No. He reported me to the police on numerous occasions when he was up in New York claiming I let the air out of his tired and I followed him around and I threatened him. And so -- but I -- I don't think I ever called the police on him.

Q. And you never submitted anything to the police regarding Steve Russell.

A. I don't recall. I did get a call from the San Francisco police one time about -- about the drugging case, and they asked me some questions. And -- and then I believe that I answered them as I'm answering these, 100 percent truthfully. And -- and the case was dismissed, which is why he's bringing the civil case. It's why he sues everyone, because eventually all the cases get dismissed because they have no, you know, real legal foundation. So ...

Q. And what did you tell the San Francisco police when they called you?

A. They asked me the same things -- did you have any knowledge; did she tell you this; and -- and I gave the same answers that I'm giving you. I had no idea.

Q. Did you ever help Tara report Steve Russell to the police?

A. No.

Q. Has Tara ever asked you to help her report Steve Russell to the police?

A. No.

Q. You never saw any actual evidence of Steve abusing Tara --

A. No.

Q. -- is that correct?

A. I did not.

Q. No cuts? No cuts --

A. No.

Q. -- or bruises? Okay.

A. No, no. Did you -- did you write any of these questions, or he -- he's written them all? I mean, it's like I'm talking to him. So ...

Q. It's privileged. I can't say.

A. Yeah, I know.

Q. Did -- did you ever witness any concerning behavior from Mr. Russell prior to Evie's birth?

A. I didn't -- I didn't meet the guy prior to Evie's birth other than that one time.

Q. So other than those two times you stated that Mr. Russell was acting bizarrely, was there any other concerning behavior from Mr. --

A. Yes.

Q. -- Russell?

A. Yes. Tara had mentioned on numerous occasions that Russell was a heavy drug user -- cocaine, et cetera -- and that he would, you know, come to Brooklyn where they had this apartment. And he would be up all night, and then he would disappear for two days and come back. And he'd be on these -- you know, these cocaine runs.

And she kept mentioning a guy, I think, named Chris, who's his friend. And again, our advice always to her was, well, you need to get out of that situation because it's bad.

Q. And so this was according to what Tara told you, correct?

A. Yes. It's according to what Tara told me.

Q. You never personally witnessed that.

A. I didn't, no, because I didn't see the

guy. And quite frankly, I had no interest in going to Brooklyn to see the guy.

Q. And it -- so you never personally witnessed Steve Russell taking drugs; is that correct?

A. No, I have never personally witnessed Steve Russell taking drugs.

Q. And so Tara never told you that Mr. Russell physically hurt or assaulted her at any time; is that accurate?

A. I -- I don't know. I don't know if she ever mentioned it. I've never witnessed it, no.

Q. Did you ever personally witness Tara providing Steve Russell with drugs?

A. No.

Q. Did Tara ever tell you that she brought Steve Russell to the emergency room?

A. Yes.

Q. What did she tell you?

A. That he had -- he -- he had basically lost his mind. And I think his mother was involved and maybe his brother. I don't remember the details.

Q. And when was this?

A. I don't know, exactly. It was sometime in San Francisco.

Q. And did she explain why she brought him specifically to the emergency room?

A. He claimed he was poisoned. I believe she said that they -- they were at dinner with his -- his brother and his wife and their child over at the apartment, or something. And he started claiming that someone poisoned him, whether it was the Ukrainians or his brother or someone else. Some -- someone had poisoned him. It's -- it's what I remember.

Q. Do you believe there's a chance that he felt poisoned because he was being drugged by Tara?

A. A zero chance.

Q. Did Tara ever tell you that Steve Russell had set a fire in their home?

A. No. I don't -- I -- I -- she told me he did all kinds of odd things, but I don't remember that specifically.

Q. Did you ever personally witness Steve Russell breaking electronic devices?

A. Jesus. Yeah, we're -- we're -- you -- you're going off on some tangents here. So I -- I don't know how much longer I want to do this because none of this has anything to do with the case at hand. No, I never did.

Q. Did Tara ever tell you that Steve Russell had broken, or tried to break, one of her devices -- electronic devices?

A. She did. She said he took his -- her computer away. And you know, he's done -- he -- he's -- technically, he's -- he's a very savvy guy. And -- and, you know -- and -- and he's proven that by forwarding, you know, hacked emails and hacked text messages that I've seen that he's done. So you know ...

Q. What else did Tara tell you about Steve and her laptop?

A. I think she mentioned that he had thrown it across the -- the room, or something, and -- and broke it.

Q. Did she say anything else about Steve Russell's actions during that?

A. No.

Q. So she never stated to you that Steve Russell had hit her while they were fighting over this laptop.

A. Yeah. She did say that he was -- he had grabbed her arm, or something like that, aggressively and had hurt her. Now that -- thanks for reminding me. I -- I -- I kind of overlooked

that. But now I do remember her saying that.

Q. That -- do you remember that Tara Walsh told you that Steve Russell had hit her?

A. Hurt her, yes.

Q. Hit.

A. That he hit her? He grabbed her and hurt her.

Q. Did Tara tell you that Steve Russell had kicked her?

A. I don't recall her saying that, no.

Q. Did Tara Walsh ever tell you that Steve Russell had punched her?

A. No.

Q. And you don't recall if Tara had ever told you that Steve Russell had hit her.

A. I'm not sure what the difference is between hit and hurt, but he hurt her.

Q. And how -- what did Tara tell you about him hurting her?

A. Him, like, pulling the computer out of her hand and, like, you know, shoving her and -- and then taking the computer forcefully and throwing it. If that's not hitting her, you know, it's -- it's semantics. So you make the determination.

Q. Do you remember how many days Tara was in

the hospital for Evie's birth?

A. I don't remember, specifically. I'd say it wasn't that long. It was maybe two days, maybe three.

Q. Were you there for Evie's birth?

A. I was, yes.

Q. For how many days?

A. I was there the -- the night she was born, and we went back the next day. And I believe we even might have driven her back to Brooklyn. I can't remember. I can't remember.

Q. Who else was at the hospital?

A. My wife and my two daughters. And then the next day, there were -- you know, there were quite a few people -- aunts, uncles.

Q. Was Steve there?

A. Yes. Steve did show up the next day. He was there the night of the birth, and then he disappeared. And he showed up at the hospital the next day after he had informed us and gave us a list of all the things he had bought at Bloomingdale's or someplace.

Q. So how many -- how many days was Steve there?

A. I'm not sure; may -- maybe two. But he --

he, you know, wasn't there throughout. He disappeared.

Q. While Steve was at the hospital, how was he acting?

A. Bizarre.

Q. How, specifically?

A. The security guards were there. He had security guards with him at the birth, okay?

Q. Did you -- did you notice any violent behavior?

A. There was no violent behavior at the hospital. He -- he would have had to do it out -- out in the open. No. No.

Q. Did you know that after Brienne brought Tara her medication at the hospital, Steve felt that he had been drugged?

A. No.

Q. Did Tara tell you about this?

A. So -- so Tara drugged him from her prone position in the hospital bed?

Q. Is that a no?

A. No.

Q. Did -- did Tara ever talk to you about researching a famous woman poisoner?

A. No.

Q. Did Tara ever tell you about her researching what a lethal dose of Seroquel was?

A. No.

Q. And --

A. You -- you've got to remember something here. The whole premise of this case, from what I understand and which you're -- you're not even hinting at, is that somehow Steve Russell was given some Seroquel one night or two nights, or whatever he say, and basically became -- began a string of -- of insane behavior that lasted for months. I think that maybe -- you should be talking to some pharmacists and see if that's actually possible that Seroquel in small doses can turn a person into a raving lunatic for months at a time because that's the premise of the case, okay?

So you could answer all your questions by doing some very basic research. And you'll realize that the -- the charges made here are -- are scientific. It's right out of some sci-fi magazine, and they're ludicrous. And you're asking me to answer questions that have no basis in reality.

Q. I'm going to proceed with my questions. Mr. Walsh, you -- when Tara told you that Steve had hit her, did you call the -- did you think to call

the police?

A. I -- no because it -- it -- she had told me it had happened prior to the time she mentioned it to me. She didn't call -- she didn't tell me when it was happening at the point of it happening. So ...

Q. And did you believe her when she told you that?

A. I did, yeah.

Q. And did you ever see any actual evidence of that happening, or you just base -- solely relying on what Tara told you?

A. Joy, I'm going to -- I'm going to ask you this again because it's clear that you're -- you're communicating with Russell right now. And -- and I wish you'd be honest about that because you turn your eyes and you read the questions. And you -- it -- it -- it's -- you -- you're -- you're being fed the questions. There's no doubt in my mind.

Q. Okay. Well, I'll represent to you that that's not true. I've prepared my own topics, but --

A. Okay. Well -- well, your -- your -- your reputation is on the line. And if we discover otherwise, it's -- it's going to be -- I -- I -- I

think it's going to be an issue. So ...

Q. So did Tara tell you when she went back to the apartment after giving birth that Steve had destroyed the apartment?

A. Yeah. Oh, I -- I -- I was in the apartment. The apartment was -- was a horror show, and we didn't -- we didn't want Evie going back there. And I spent -- you know, members of our family spent hours cleaning the place up before Evie came back because we did not -- the condition of the apartment was -- was really bad.

Q. Did Tara tell you that Steve believed the apartment had broken -- been broken into?

A. Yes.

Q. Did Tara tell you --

A. No --

Q. -- that --

A. And -- and Steve -- Steve told me that himself.

Q. Did Tara tell you that Steve and his security personnel had set safety triggers to let him know if somebody had entered the apartment without their consent?

A. Tara didn't tell me that, no.

Q. Did Tara tell you that, in fact, Matan

Gavish had been in -- in the apartment without Steve's knowledge and triggered the safety triggers?

A. No. I had no knowledge of that whatsoever.

Q. So if Steve believing that -- seeing that somebody had triggered the safety triggers, that wouldn't change your opinion of -- on why Steve thought he had -- the apartment had been broken into?

MR. MOORE: Assumes facts not in evidence; incomplete hypothetical.

You can answer if you have an opinion.

BY MS. LLAGUNO:

A. No. No.

Q. And going back to my previous question -- I don't believe you answered it -- so you never saw any actual evidence of any physical abuse against Tara Walsh; is that correct?

A. That's correct.

Q. And you stated that Tara had told you sometime after it happened, not -- not close to the time the laptop incident happened. Do you know about how long after she told you?

A. No.

Q. Did Tara tell you that after Steve -- I'm

sorry. Go back.

Did -- did Tara tell you that Steve had fired his security personnel?

A. I don't know. I -- I don't know. I don't know. I don't know if -- if she did or she didn't.

Q. Did Tara tell you that, after Steve fired them, the security personnel were staging an intervention?

A. No.

Q. Did Tara tell you that the security were still watching Steve after he had fired them?

A. No. My -- my -- my impression was that there -- the -- the security people that were ethical and decent people viewed Russell as a deeply troubled man, and they felt sorry for him. So there are people like that. There are people that take their professional responsibility seriously and -- and actually try to help their clients. And I think that was the case with a couple of them. I think they genuinely felt bad for the guy because he was so out of control.

Q. Do you believe that they told Steve Russell that there were -- that there was --

A. I -- I believe the two guys that I met at the hospital quit because they -- they realized that

they were just taking money from -- from a person that was severely challenged.

Q. And how do you know the two guys --

A. I don't know that. I don't know that. I'm saying I -- I -- I -- I believe that's what happened. I don't know that for fact.

Q. What is the basis of your belief that they quit?

A. That they were nice guys. And when I was discussing with them and -- you know, they -- they were -- they were -- as I said, they were sympathetic to the situation my daughter was in and that we -- we were in as grandparents and relatives and -- and the baby's case because they saw that -- that -- that -- they -- they watched this guy. They were following him around. And they were being paid to follow him around. And they -- it -- it was obvious that there -- there's a deeply troubled man.

Q. But how do you know specifically that they quit? Did they tell you they were going to quit?

A. I -- I don't remember. I told you I don't remember.

Q. But you learned -- did you somehow learn that they quit, or this is just an assumption --

A. I'm saying -- no, no, no. It's -- it's an

assumption. It's -- I -- I'm -- I'm speculating. I don't know that for a fact.

Q. Do you know -- sorry. I'm going to go back.

You stated that you expressed to Tara that you were against her moving back to San Francisco. Do you have any understanding of why Tara chose to do so anyway?

A. Nope.

Q. Do you know if Tara wanted to try to get Steve Russell to marry her?

A. I have no idea.

MR. MOORE: Asked and answered.

BY MS. LLAGUNO:

A. Yeah. It's been answered a bunch of times.

Are we -- are we near conclusion here, Joy?

Q. I'm hoping so. I'll try to get to this as soon -- did you want another break?

A. No. I -- I just want to be done with it.

Q. Do you know if anybody in your family went to San Francisco to help Tara?

A. No. Nobody in our family went to San Francisco.

Q. Why not?

A. Why not? San Francisco is a six-hour flight, right, from New York. It's not something you just go and do.

Q. Were you concerned about Tara losing custody of Evie?

A. No. I didn't think --

Q. Was your -- I'm sorry. Go ahead.

A. No. I was not.

Q. Was your family concerned?

A. No.

Q. Were you aware that, after being caught by the nanny drugging Steve and being diagnosed with certain mental illnesses, Tara almost fled San Francisco, leaving Evie behind?

A. I -- I have no knowledge that Tara drugged Steve Russell, and I don't believe she fled San Francisco. Again, she's an adult. She made her own decision to leave San Francisco. And so -- so no. The answer is no.

Q. Do you remember an incident where Tara tried to leave San Francisco without Evie?

A. No.

Q. So Tara never called you when she tried to leave San Francisco and left Evie at home.

A. No. Not that I recall, no.

Q. Did Tara ever send you photographs of bruising of her thighs when she was in San Francisco?

A. I don't recall.

Q. Did Tara ever tell you that she had bruised herself by bumping into her kitchen island while chasing Steve Russell?

A. No.

Q. Did Tara ever tell you that she had attempted to destroy Steve Russell's laptop by stabbing it?

A. No.

Q. Did Tara ever tell you that she was experiencing what she called post-partum psychosis?

A. No.

Q. So Brienne testified that she writes a personal blog called A Brie Grows in Brooklyn. Have you ever read her blog?

A. Unfortunately, yes.

Q. How often have you read it?

A. As infrequently as possible.

Q. Have you gotten angry with her over certain blog posts?

A. Personal question; not going to answer.

Q. I just wanted to clarify. You don't want to answer that question because you believe it to be personal.

A. That's right.

Q. Did Brienne ever write anything that you believed was not true?

A. I think she tended to embellish things at times, yes.

Q. Could you give me examples of --

A. No.

Q. Because you don't recall or because you don't want to respond?

A. Because I don't want to. Personal question; I'm choosing not to answer.

Q. Brienne has written in her blog about what she called Tara's "rapid mood swings." Based on what you've observed of Tara, have there been times when you saw her mood change suddenly?

A. No comment; personal question; not going to answer.

Q. Have you ever seen Tara react to something in a way that you thought to yourself was verbally aggressive, like lashing out at someone?

A. Personal question; not going to answer.

Q. Do you believe Tara to be impulsive?

A. Personal question; not going to answer.

Q. Have you ever witnessed Tara acting impulsively?

A. Personal question; not going to answer.

Q. Has Tara ever acted impulsively with regards to her spending?

A. Personal question; not going to answer.

Q. Does Tara ever impulsively buy things?

A. Personal question; not going to answer. And probably for the next 20 you're going to ask me I'll have the same response. So maybe we can just get to something with content.

MR. MOORE: I would also object on the basis of relevance.

BY MS. LLAGUNO:

Q. Thank you, Mr. Walsh. I have to make a record of the questions you don't want to answer just for our own record. But thank you. Just -- so bear with me.

Has Tara Walsh ever made large purchases on a whim?

A. Oh, God. Same -- same answers. Personal information; no comment; not going to answer.

Q. Does she ever go on impulsive sprees?

A. Personal question; not going to answer.

Q. Has Tara ever, to your knowledge, charged so much on a credit card that it was far beyond her own ability to pay it back?

A. Personal question; not going to answer.

Q. In one of Brienne's blog posts, she describes an incident in which Tara was dancing what she called "out-of-control style when she suddenly stopped, approached a guy who was making out with his girlfriend, and kicked him as hard as she could on his ass." Have you ever witnessed Tara engage physically violent acts like this?

A. Jesus Christ. Person -- no, I have not.

Q. Has Tara often exhibited strange or erratic behavior like this?

A. Personal question; not going to answer.

Q. Brienne also wrote in her blog that Tara wanted a pet hamster and, when she wasn't given one, she purposely threw herself down a flight of stairs. Has Tara purposely hurt herself because she did not get something she wanted on other occasions?

A. No. It's ridiculous.

Q. Has Tara ever threatened to hurt herself in order to get something she wanted?

A. No.

Q. I'm going to show you now what we're going

to mark as Exhibit 93.

THE REPORTER: Marked as Exhibit 93.

(WHEREUPON, Exhibit 93 was marked for identification.)

BY MS. LLAGUNO:

Q. This is a text message conversation between Brienne and Tara that Brienne produced in this litigation. Have you seen this text message before?

A. Who's this from? No.

Q. Brienne produced this text message with Tara in the litigation.

A. So what --

Q. Okay.

A. -- about it?

Q. Brienne --

MR. MOORE: He's not seen it. It's not relevant to anything. Can you move on? I mean, this is, again, really improper behavior.

THE DEPONENT: Yeah. What -- what does this have to do with her drugging --

MR. MOORE: She -- she just wants to -- she's just trying to shame Tara in this by having something to do with -- about abortion in an -- in an email. It's really a disgusting and despicable

act by a member of the bar, and it shouldn't be condoned by even responding to it.

THE DEPONENT: Yeah. I -- I -- I -- I agree, Frank. Thank you. And you are not coaching me to answer, but this is -- you know, this is beyond the realm of any serious questioning or fact-finding. And if it continues, I'm just going to discontinue the deposition.

MS. LLAGUNO: And Mr. Moore, I'd like to remind you again to stop with your improper speaking objections --

MR. MOORE: You can remind me as much as you want. I'm not going to --

MS. LLAGUNO: Let -- let me --

MR. MOORE: -- listen to you.

MS. LLAGUNO: -- let -- let --

MR. MOORE: I -- I find nothing you say --

MS. LLAGUNO: -- let me finish. Let me --

MR. MOORE: -- relevant or accurate.

MS. LLAGUNO: Let me finish my statement. Stop being --

MR. MOORE: No. You --

MS. LLAGUNO: -- disrespectful.

MR. MOORE: I'm sorry.

MS. LLAGUNO: We've told you multiple --

MR. MOORE: No. I -- you -- you have no respect coming to you.

MS. LLAGUNO: Stop -- stop interrupting me, and let me finish my statement.

Our position is Brienne produced this in litigation, and we are able to conduct discovery on Tara's credibility and communications with her --

MR. MOORE: Not -- not -- not -- not about a private matter. You're -- the -- it's really disgusting, you know. You're just a disgusting human being. So I -- I -- I just --

MS. LLAGUNO: Could you repeat that, Mr. Moore?

MR. MOORE: What?

MS. LLAGUNO: Could you repeat that?

MR. MOORE: You're a disgusting human being.

MS. LLAGUNO: Thank you.

MR. MOORE: To do this -- to do this to this -- this father, really, really pathetic, you know. What does this have to do with the case, first of all?

MS. LLAGUNO: Let me --

MR. MOORE: And secondly, why are you just trying to shame this family? I don't get it.

MS. LLAGUNO: Let me continue with my questions.

MR. MOORE: Is this -- is this the kind of thing you're getting paid for?

BY MS. LLAGUNO:

Q. Brienne testified at her deposition that the context of this message was that you and Maura Walsh had offered to help Brienne and Caleb with the down payment on their home in Westchester; is that accurate?

A. I -- I'm not answering that question. It has nothing to do with anything. It's none of your business.

Q. Did you speak with Tara about helping with Brienne and Caleb's down payment?

A. None of your business.

Q. Just to clarify, you're refusing to answer, correct?

A. None of your business.

MR. MOORE: On the basis of privacy, I assume?

THE DEPONENT: Yes.

BY MS. LLAGUNO:

Q. Did you know why that Tara -- sorry. Scratch that. Did you know that Tara was so angry

about it?

A. Not going to answer.

Q. Brienne testified that it was not true that she ever forced Tara to get an abortion. Has Tara told other lies like this?

MR. MOORE: Assumes facts not in evidence; argumentative; constitutes collateral, or in attempts -- and a lame attempt at that -- collateral impeachment -- really lame.

BY MS. LLAGUNO:

Q. You can respond, Mr. Walsh.

A. No.

Q. Does Tara have a tendency to distort reality?

A. It's the same question --

MR. MOORE: Argumentative.

BY MS. LLAGUNO:

A. No answer; same nonsense questions. I'll give you a chance to, you know, get back on track and ask real questions. But if this continues, I'm not going to sit here for hours and, you know, try to answer questions that have no bearing on anything and that are my personal private matters and, you know, that you're being dictated to by Russell. So ...

Q. Mr. Walsh, our position is we are able to take -- conduct discovery on Tara's credibility.

A. No, Joy --

MR. MOORE: No, you're not.

BY MS. LLAGUNO:

A. Your position is that you're being paid by Russell to harass and intrude upon a family that has been under this guy's pressure and -- and -- and -- and Tara for three years now.

You know, I go out at night -- and you can put this in the record, and I hope the court reporter gets it all -- but sometimes I'm at the end of my driveway when it's dark at night. And I feel uncomfortable that someone's going to come out of the weeds and shoot me because Mr. Russell has enough money, and he's unstable enough, he's vindictive enough, he's angry enough to do something really, really serious. And people like you enable him, okay? And you give a person that has ill intentions and psychotic thoughts -- you give a person like that a leash to do what you're sitting there doing today, okay? And -- and I'm not going to allow you to do it, and I'm not going to let it persist because it's unfair, it's unethical, and it's mean.

Q. I am going to now continue with my questions --

MR. MOORE: Here, here.

BY MS. LLAGUNO:

Q. -- appreciate it if we stop getting on these tangents, we don't take time at the deposition --

MR. MOORE: You're -- you're on the tangent, counsel.

BY MS. LLAGUNO:

A. You've been on one continuous tangent. You just -- it's the same nonsense you keep spinning over and over again, okay?

If you want to stick to the facts of the case, Steve Russell is a man with serious mental instability. And you are one of the few lawyers in the world that would take payment from this guy to basically allow him to run rampant and -- and -- and ruin people's lives, okay? So that's the basis of the case. There is no other basis.

Q. So back to my question, has Tara ever lashed out at --

A. No.

Q. -- other --

A. No. Never. She's been a perfect saint

her entire life. She's a model citizen. I've never met a more genuine, wonderful, beautiful woman in my life.

Q. And yet you take what she says with a grain of salt; is that correct?

A. No. I believe everything she says. She's a very, very straight-forward person.

Q. And who is Matan Gavish?

A. I have no idea.

Q. Do you know his relationship --

A. You already asked me that. He's a friend of hers. Did Steve forget to -- did he -- that he already asked that?

MR. MOORE: Yeah. You know, I mean, we -- we now are treading over --

MS. LLAGUNO: Mr. Moore --

MR. MOORE: -- asked and answered questions. It seems like you've run out of questions. Can you ask a question that is not a repetitive question? This is --

MS. LLAGUNO: Can you stop?

MR. MOORE: -- really off track here.

MS. LLAGUNO: Mr. Moore, it is for the judge to decide what isn't and what is off track. You can object --

MR. MOORE: I'm telling you what's off track because I can -- I can determine whether or not you're just harassing a witness. And that's what this appears to be. So if you're going to continue down this road --

MS. LLAGUNO: State your objection --

MR. MOORE: That's my objection. You're harassing and you're -- because you're asking questions you already got answers to. If you've run out of questions -- it's becoming very obvious you have -- we should end this. If you have something additional that's relevant, ask it.

MS. LLAGUNO: And this is all relevant. And I'm continuing with my --

THE DEPONENT: It's not all relevant. Let's -- let's wrap it up because this is -- it's just more of the same nonsense. We're going around in circles. And -- and I -- I don't believe for a second that Steve Russell is not involved here.

BY MS. LLAGUNO:

Q. Okay. Brienne also wrote a blog post in which she wrote that she's attracted to "psychologically disturbed people." And below that included a photo of Tara. Would you agree that Tara is psychologically disturbed?

A. I would -- I would agree that, in this case, as to her attraction of Stephen Russell, yeah, she -- she has at least one time in her life been attracted to -- to psychotic -- a psychotic person, at least once in her life.

Q. Do you believe she has been on other occasions?

A. No.

Q. Do you believe Tara is psychologically disturbed?

A. No.

Q. Brienne also produced text messages with Tara in which she called Tara "selfish and self-consumed." Do you agree that Tara is selfish?

A. No.

Q. Would you agree that Tara is self-consumed?

A. No.

Q. Brienne also produced text messages in which she told Tara, quote, I'm sick of this victim act. Take some -- expletive -- responsibility, end quote. Would you agree that Tara plays a victim act?

A. Personal question; nonsense; no answer.

Q. I'm sorry. Just to clarify, you're -- you

don't want to answer --

A. I'm not answering. It's personal.

Q. -- because it's personal --

A. Yeah.

Q. -- because it's a personal question.

A. That's correct.

MR. MOORE: I believe it's because it's the right to familial privacy is what he's invoking.

MS. LLAGUNO: Mr. Moore, don't put words in the witness' mouth. I'm asking --

MR. MOORE: No. I -- I -- I'm -- I -- well, I will tell you that this is a matter of familial privacy, and I believe that's -- forms the basis of -- another basis, at least, for his refusal to answer.

MS. LLAGUNO: Okay. Then make that objection. We can take that up with the judge.

MR. MOORE: You should.

BY MS. LLAGUNO:

Q. Mr. Walsh, would you agree that Tara does not take responsibility for her actions?

A. No. No, I wouldn't agree to that.

Q. Brienne also produced text messages in which she called Tara a liar. Would you agree that Tara is a liar?

A. No.

Q. Has Tara ever lied to you?

A. No.

Q. Has Tara ever lied about you?

A. No.

Q. Can you recall any times Tara has lied to someone?

A. No.

Q. Do you have the impression that Tara has no qualms about lying?

A. No.

Q. Is lying something Tara does to get what she wants?

A. No.

Q. Tara has stated that being in your home is an unsafe environment for Evie. Do you think that's true?

A. Evie is in a very, very loving environment. She prospers in the environment she's in.

Q. So would you say Tara Walsh stating that your home is unsafe, would you consider that a lie?

A. I would say that it was not a lie. I would say it was -- it was a bad interpretation.

Q. Brienne testified that one of the reasons

she called Tara a liar was because Tara said Evie needed a safe environment and Tara did not feel safe at your house --

A. I find that --

Q. -- is your --

A. -- I find that --

Q. Why would --

A. I don't know.

Q. -- why --

A. You'll have to ask her.

Q. Please let me finish the question before responding so the court reporter can get it.

Why would Tara lie about that?

A. You'll have to ask her.

Q. Brienne testified at length about your family and how she and Tara were raised.

MS. LLAGUNO: Where did Mr. Walsh go?

BY MS. LLAGUNO:

A. Personal question; not going to answer; has nothing to do with the case or anything else.

Q. For example, Brienne testified that she described the environment in which she was raised as emotionally abusive. Do you agree with Brienne's characterization?

A. Absolutely not.

Q. Do you believe Brienne was lying?

MR. MOORE: You can't -- that's impermissible vouching.

THE DEPONENT: Just it's --

MR. MOORE: This is a -- this is a vouching question. It's not --

BY MS. LLAGUNO:

A. Yeah. It's --

MR. MOORE: -- appropriate.

BY MS. LLAGUNO:

A. -- an obnoxious question. It's unprofessional. It's -- it's pathetic, quite frankly. And it's -- you know what? I'd blame you, Joy, if I -- more so if I didn't think you were just reading off a script. So -- but I wish you -- I wish you great success in your career once you dislodge yourself from this guy because you're -- you're taking yourself down a bad path here being his -- being his -- you know, his disciple.

Q. Brienne also called her childhood -- or -- traumatic --

A. Go ahead. Great. Great. Fantastic.

Q. You disagree with that characterization as well?

A. Yeah. Brienne went to Brown University,

and her entire tuition and living expenses were paid for by her abusive parents. Her European vacations were paid for by her abusive parents. She went to one of the best high schools in the country as a result of her abusive parents. So you tell me, okay? You make the --

Q. Brienne testified that when she and Tara were --

A. -- interpretation.

Q. -- children -- I'm sorry. I cut you off. I thought you had -- I think you froze a bit there.

Brienne testified that when she and Tara were children, Maura would withhold food from them; is that true?

A. It's ridiculous.

Q. Brienne also testified that when she and Tara were teenagers, Tara or her attorney called Child Protective Services on you and Maura Walsh multiple times; is that true?

A. It's ridiculous.

Q. Why was Child Protective Services called?

MR. MOORE: Assumes facts not in evidence.

BY MS. LLAGUNO:

A. Yeah. It has nothing to do with anything; not answering; personal question; personal

information.

Q. Are you refusing to answer if it was true or not?

A. I am, yes.

Q. Brienne also described a legal proceeding over custody or emancipation of Tara involving Tara and Brienne's aunts. Do you recall this proceeding?

A. Not going to answer that; personal question --

Q. Will you answer --

A. No.

Q. -- will you answer --

A. I will not --

Q. -- who brought --

A. -- answer. I will not answer.

Q. Just to clarify, you're not going to answer anything in regards to -- on emancipation or custody proceeding.

A. That's correct.

Q. Did you remain Tara's --

A. You're --

Q. -- legal guardian?

A. You're going to -- you're going to follow it up with an emancipation question, right? Did I remain? Yes. We were Tara's guardians, yes,

through her --

Q. No one else --

A. -- pre-adult life, yes.

Q. So no one else became Tara's legal guardian.

A. Not to my knowledge, no.

Q. Is Tara currently living at your home willingly?

A. Other than the 12 hours she's kept in shackles in the basement, she can walk around.

Q. Tara told the court that she was living in a cold attic with no heat at your house; is that true?

A. Did -- she didn't mention the bats? Or the wild animals?

Q. Mr. Walsh, please respond to the question. Is that true?

A. Of course not.

Q. So Tara is not living in a cold attic with no heat in your house.

A. Absolutely not.

Q. Brienne has also written about her and the rest of your family receiving subpoenas in this litigation and that you screamed at her for responding to the subpoena and that she should just

throw out the paperwork and ignore the subpoena; do you recall this?

A. No.

Q. Were you angry with Brienne for suggesting at any time that she might respond --

A. No.

Q. -- to a subpoena --

A. No.

Q. -- from Steve Russell?

A. No, no.

Q. Did you tell Brienne that she should throw out any paperwork pertaining to this proceeding?

A. I have no recollection of doing that, no.

Q. Did you tell her husband, Caleb, the same thing?

A. I have no recollection, no.

Q. Did you ever tell Brienne to ignore paperwork pertaining to this proceeding?

A. No recollection, no.

Q. Did Tara ever tell you to ignore paperwork pertaining --

A. No recollection, no.

Q. Have -- have you ever ignored paperwork pertaining to this proceeding?

A. Have I? I -- if I was handed something

legally and professionally, I'd take it. If I wasn't, I would -- so I don't know if I have or not, quite frankly. But if you're going to ask me if I -- -

Q. Have you ignored --

A. -- stack of papers from a lunatic, if I'm going to leaf through them and read them and give them any kind of credence, the answer is no.

Q. Have you ignored subpoenas in this proceeding?

A. No. I'm here, right?

Q. Have --

A. It's the only subpoena that I recall.

Q. Have you ever thrown away paperwork pertaining to this proceeding?

A. This proceeding or any other proceeding? There are no other proceedings.

Q. This proceeding.

A. I -- I don't believe I throw anything out. I'm here; aren't I?

Q. Have you thrown away paperwork pertaining to any proceeding involving Steve Russell?

A. I don't know of any other proceedings.

Q. You accepted service of the subpoena for your testimony today in September, and you also

accepted subpoenas to Maura Walsh, Brendan Walsh, and Matan Gavish. Did you speak with any of them about the subpoenas?

A. No.

Q. Did you provide them with the subpoenas you accepted --

A. No.

Q. -- on their behalf?

A. No. I didn't accept anything on their behalf. I wasn't aware I was accepting anything on their behalf.

Q. You didn't tell the process server that you would accept it on their behalf.

A. I don't believe I would have, no.

Q. Did you --

A. We got --

Q. -- provide --

A. -- so much stuff from that guy, I would just tell him, like, you know, just leave it on the floor and --

MR. MOORE: Counsel --

BY MS. LLAGUNO:

A. -- I --

MR. MOORE: -- are you -- are you make --

MS. LLAGUNO: I --

MR. MOORE: -- are you making a representation a process server -- actually that the process server's position was that --

MS. LLAGUNO: Mr. Moore --

MR. MOORE: -- that this individual -- that this individual -- no, I -- you're -- you're asking a question. You're trying to make a record. But it sounds just absurd on its face that a process server would accept the representation that someone else is going to be accepting service on -- on behalf of various individuals and -- and that is proper service? Because I'm telling you this: If -- if -- if that's your basis for getting these people here at the deposition, it's improper. Then that would be indication that people weren't properly served with your subpoena, and these depositions may, in fact, be null and void. It looks like you might have gotten a court order under false pretenses.

MS. LLAGUNO: Again, please refrain from your speaking objections, Mr. Moore, and let me continue with my --

MR. MOORE: I'm going to make my record. You can't tell me what to do. So sorry.

BY MS. LLAGUNO:

Q. Okay. Mr. Walsh, when you received the subpoenas, what did you do with them?

A. I have no recollection. I don't even remember receiving them.

Q. So you never provided the subpoenas to Maura, Brendan, and Matan.

A. No. I don't remember receiving them, no.

Q. Did Tara Walsh ever move to Thailand as a teenager?

MR. MOORE: Objection; relevance.

BY MS. LLAGUNO:

A. Tara went to Thailand as part of a study abroad program. So ...

Q. Got it. And do you recall how old she was, approximately, for this study abroad program?

A. She was in college.

Q. Can you give us an overview of what Tara did for work over the past 10 years or so?

A. No.

Q. Do you know if she has ever had any employees?

A. No. I'm not -- I'm not going to answer these questions.

Q. Can you explain the basis for your refusal to answer?

A. Because they have nothing to do with anything that involves this case or -- or with me personally.

Q. We are able to conduct discovery onto Tara's background.

A. I --

MR. MOORE: No, you're not. You're far afield of what this case is about. You're harassing the witness now. So you -- you better get to something that's relevant and germane to your case.

MS. LLAGUNO: So are you directing him not to respond?

MR. MOORE: I'm directing you to stop harassing the witness. That's what I'm directing you to do.

MS. LLAGUNO: Noted. Are you directing him not to respond?

MR. MOORE: I am directing you to stop harassing the witness.

MS. LLAGUNO: And you can state your objection for the record. I'm asking --

MR. MOORE: That's what I just did three times now. So shut up and move on.

BY MS. LLAGUNO:

Q. Tara also started a company called Vital

Branding; is that right?

A. You know, Joy, it -- the -- we're -- it's the same line of questioning and, you know, about her character and things like that. You're trying to get me to say that she's an awful person who's capable of drugging your -- you know, your -- your esteemed client. And you know, it's -- well, you -- you haven't gotten there yet, and you're not going to get there. We're never going to get there.

So let's -- unless you have any real questions, let's wrap this up, okay? I'm done answering question after question about absolute nonsense, so questions that have been dictated to you by your client, who has gone out of his way to harass us for years and which you're not part and parcel --

Q. And so just to confirm, you -- you prefer not --

A. -- aiding and abetting. So ...

Q. I'm sorry if I interrupted you. I -- it cut out a bit.

I was -- okay. I just -- to clarify for my understanding, you are refusing to answer questions regarding Tara's background.

A. Yeah. I -- at this point, no, I -- I --

I'm not refusing. I'm refusing from this point on because I've been asked so many of them. But I -- I -- I did not refuse to answer. I've answered quite a few questions, hundreds of questions from you.

So to put it in the -- you know, to -- to -- for -- for purposes of stating that I refuse to answer, the -- the -- that's just not fair, and it's ludicrous. What I'm saying is I'm just tired of answering the same questions over and over and over again that -- that are -- are, I think, designed to get me to say something terrible about Tara, which will then validate all of Steve Russell's, basically, fears, paranoid responses to, and all the other stuff. And it's just -- it's just silly, and -- and -- and we should wrap this up.

MR. MOORE: Yeah. I mean, we've been going on now for, it looks like, almost four hours. And you've really gotten off the deep end and are now into just character assassination, harassing conduct, irrelevant questions, some of them which are repetitive of questions already asked and answered. I have other things to do. I'm going to have to move on and get out of this. So I'd like you to wrap this up and be done with it.

MS. LLAGUNO: Mr. Moore, respectfully, you

can't dictate when the deposition --

THE DEPONENT: Yeah. I -- I'm -- I'm going to --

MR. MOORE: I -- I can --

THE DEPONENT: -- I'll -- I'll make that decision, and I'll let the chips fall as they may. And if a judge figures I'm in violation of, you know, refusing to be held hostage for nonsense for hours, I'll leave that up to the judge. So I'm willing -- I'm willing to take my chances.

If you have some real questions you want to ask me, ask me. If you want to just maybe get Steve Russell to summarize his most pertinent concerns and have him run them by me right now, we can finish this up.

BY MS. LLAGUNO:

Q. Currently, I was just asking about your understanding of what Tara does for a living and her company called Vital Branding. You --

A. I'm not going to answer. I'm not going to answer anything to do with her career. Zero.

MS. LLAGUNO: So I think, Court Reporter, we've been going on for more than an hour now. Can we take a quick, five-minute break?

THE DEPONENT: No. I'm done. I'm done --

MR. MOORE: No. I -- yeah. You -- you -- if you're -- if you're -- if you're going to continue, we're -- we're -- we're going to finish now, or we'll give you a few more minutes if you've got some additional questions. But you -- you've running -- kind of run the ship aground at this point.

THE DEPONENT: Yeah. If -- if -- if you have questions, a couple of them, we can wrap it up. But if you go to break, I'm gone.

THE REPORTER: Would you like -- would you like to go off the record at this time?

THE DEPONENT: No --

MR. MOORE: No.

THE REPORTER: Would --

MR. MOORE: Not -- not unless we're finishing. If we're finishing, let's --

THE DEPONENT: No.

MR. MOORE: -- let's finish. If -- if not, then -- if we're not finishing, she's -- you know, whatever your last questions are, let's wrap it up.

MS. LLAGUNO: I would like to take a five-minute break.

THE VIDEOGRAPHER: Okay. The time is 3:44

p.m., and we are off the record.

(WHEREUPON, a recess was taken.)

MS. LLAGUNO: Thank you, Mr. Walsh. I will be ending the deposition for today, but I will be adjourning it based on that there were no documents produced today and reserving my right to continue if we need to do so to get those documents compelled.

MR. MOORE: Yeah. So just so you understand, Mr. Walsh, the -- that only means that you -- you -- you -- you only have to come back if there's a court order from a San Francisco Superior Court.

THE DEPONENT: Okay.

MR. MOORE: You've met your obligation of the New York order. And so in order to compel you further, she would have to get an order from the San Francisco Superior Court.

THE DEPONENT: Thank you, Frank.

MS. LLAGUNO: And we --

MR. MOORE: You're welcome.

MS. LLAGUNO: -- we disagree --

MR. MOORE: Thank you.

MS. LLAGUNO: -- we'd agree -- disagree with that representation. But the counsel can

direct you how he wishes.

Frank, did you have any follow-up questions or anything else to add?

MR. MOORE: I have nothing.

THE VIDEOGRAPHER: Okay. This is the end of the deposition of Stephen Walsh. The court reporter will now take the orders for the transcript.

THE REPORTER: All right.

MR. MOORE: Nice meeting you, Stephen --

THE REPORTER: Ms. Llaguno, would you like to order the original of this transcript at this time?

MS. LLAGUNO: Yes. And --

THE REPORTER: And --

MS. LLAGUNO: -- get a rough draft expedited as well?

THE REPORTER: Yes. I'll just note for the record Mr. Moore has discontinued the call. But he did note off the record that he does not wish to order a copy at this time.

MS. LLAGUNO: Right. Correct. And --

THE REPORTER: And --

MS. LLAGUNO: -- and -- I'm sorry. Go ahead.

THE REPORTER: Yeah. Oh, no. Sorry. My apologies. For the rough, when -- when do you need that by?

MS. LLAGUNO: As soon as possible. Or when -- when do you think is a reasonable time to expect it by?

THE REPORTER: Let's see here. Would Friday be soon enough, or do you need it sooner?

MS. LLAGUNO: Could we do Thursday? Only because I'm trying to get something on file. But that's fine. I mean, whenever --

THE REPORTER: No problem.

MS. LLAGUNO: -- you can -- you can get it. And --

THE REPORTER: Thursday? Okay.

MS. LLAGUNO: And let me send you now the marked exhibits. Just I want you to confirm that you can open them.

THE REPORTER: Oh, absolutely. And we can -- we can go off the record.

MS. LLAGUNO: Oh, yeah --

THE VIDEOGRAPHER: Okay. The time is 4:02 p.m., and we are off the record.

(The deposition of Stephen Walsh concluded at 4:02 p.m.)

CERTIFICATE

I, the undersigned, Erich Demerath, am a videographer on behalf of NAEGELI Deposition & Trial. I do hereby certify that I have accurately made the video recording of the deposition of Stephen Walsh, in the above captioned matter on the 26th day of April, 2021, taken at the location of Remote Video Conference, [redacted], Chappaqua, NY 10514.

No alterations, additions, or deletions were made thereto.

I further certify that I am not related to any of these parties in the matter and I have no financial interest in the outcome of this matter.



Erich Demerath

CERTIFICATE

I, Monica DeLong, do hereby certify that I reported all proceedings adduced in the foregoing matter and that the foregoing transcript pages constitutes a full, true and accurate record of said proceedings to the best of my ability.

I further certify that I am neither related to counsel or any party to the proceedings nor have any interest in the outcome of the proceedings.

IN WITNESS HEREOF, I have hereunto set my hand this 7th day of May, 2021.



Monica DeLong
WA CCR#3489

Date: May 7, 2021 Assignment #: 50631

Deponent: Stephen Walsh

Case: Russel vs. Walsh

DEPONENT: It has been requested that you read and sign your transcript. This transcript is to be read only by you. Please make any corrections necessary on the Correction Sheet ONLY. You are to sign the Correction Sheet where indicated.

After signing the Correction Sheet, do the following:

1.The ORIGINAL executed Correction Sheet needs to be returned to our corporation.

2.Forward a COPY of the executed Correction Sheet directly to the attorney(s) listed below. (The address(es) can be found on the Appearance Page of your deposition.)

3.Retain a copy for your records.

CC: Naegeli Deposition & Trial

Joy Llaguno, Esquire

CORRECTION SHEET

Deposition of: Stephen Walsh Date: 04/26/21

Regarding: Russel vs. Walsh

Reporter: DeLong/Willman

_____

Please make all corrections, changes or clarifications to your testimony on this sheet, showing page and line number. If there are no changes, write "none" across the page. Sign this sheet on the line provided.

Page	Line	Reason for Change
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Signature_____

Stephen Walsh

DECLARATION

Deposition of: Stephen Walsh Date: 04/26/21

Regarding: Russel vs. Walsh

Reporter: DeLong/Willman

_____

I declare under penalty of perjury the following to be true:

I have read my deposition and the same is true and accurate save and except for any corrections as made by me on the Correction Page herein.

Signed at _____, _____

on the _____ day of _____, 2021.

Signature_____

Stephen Walsh

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